

Freedom of Expression Narratives after the *Charlie Hebdo* Attacks

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ABSTRACT

This article considers the significance of the *Charlie Hebdo* attacks and responses to them from the perspective of international human rights law on the freedom of expression. Focusing on the recent positions taken by international human rights bodies, it unravels and explores three distinct and influential narratives concerning freedom of expression that have developed amongst a range of actors, including these bodies, in the three years since the attacks took place. ‘Freedom of Expression as Identity’ recalls how the *Charlie Hebdo* attacks spurred an outpouring of political declarations concerning freedom of expression, but also laid bare the deep and long-standing cultural divisions surrounding this right. ‘Freedom of Expression as a Human Right’ unpacks the various ways in which the *Charlie Hebdo* attacks and states’ responses to them engage provisions of international human rights law. ‘Freedom of Expression as Part of the Problem’ examines approaches by the United Nations to preventing and countering violent extremism which draw upon states’ own policies. This article thus exposes the contrasts between the three narratives, as well as the inconsistencies and tensions within them, to reveal ambivalence and resistance towards freedom of expression as a right in the modern era.

KEYWORDS: freedom of expression, violent extremism, artistic freedom, *Charlie Hebdo*, Article 19 International Covenant on Civil and Political Rights

1. INTRODUCTION

An assault on freedom of expression shattered the world’s consciousness at the start of 2015 and its effects have been felt ever since. The shootings at the offices of the magazine *Charlie Hebdo* and at a kosher supermarket in Paris on 7 January of that year, which left eight journalists and nine others dead, drew global attention, sparking reactions from political leaders and media commentators, and the renewal of a global public debate around the acceptable limits of freedom of expression. In their immediate aftermath, the attacks also prompted an outbreak of violence across the Middle East and inspired shootings at a free speech event and a synagogue in Copenhagen barely a month later. Those exercising freedom of expression for a

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living or defending it by conviction—such as journalists, cartoonists and free speech advocates—suddenly seemed more vulnerable to physical attack than at any other time in recent history. Through the assault, several growing global trends concerning the ‘practitioners’ of freedom of expression—attacks against journalists and media workers,¹ legal and extra-legal restrictions on satirists (including cartoonists and comedians)² and violence ‘committed in the name of religion’³—seemed to converge, marking ‘a new and sinister step in the escalating conflict between faith and free expression’.⁴ The fact that the attacks took place in the liberal heartland of Europe, in France, seemed to make them especially stunning. In the three years since the attacks, the *Charlie Hebdo* ‘episode’ has become a cleavage point in terms of terrorist violence in the ‘West’ and also the nature of states’ policy responses: subsequent deadly attacks in Europe, particularly France⁵ and the United States of America,⁶ have frequently been traced back to those in Paris in January 2015;⁷ and

- 1 The three years leading up to the attacks were held by the Committee to Protect Journalists as the ‘most deadly period’ since its records began in 1992. See statistics collated by Committee to Protect Journalists, available at: www.cpj.org/killed/ [last accessed 8 March 2018]. For a ‘statistical overview’, see Heyns and Srinivasan, ‘Protecting the Right to Life of Journalists: The Need for a Higher Level of Engagement’ (2013) 35 *Human Rights Quarterly* 304 at 307.
- 2 Examples of recent restrictions on satirists include the following cases: the prosecution of Jan Böhermann for reading out a poem that deliberately offended the Turkish President Recep Tayyip Erdoğan under para 103 of the German Criminal Code concerning insults against organs or representatives of foreign states, upon the consent of Germany’s chancellor, Angela Merkel (the prosecution was subsequently dropped and the German Government announced the repeal of the law in January 2017); the ongoing prosecution of the cartoonist Zunar (Zulkiflee Sm Anwar Ulhaque), who faces 43 years imprisonment for a record-breaking nine charges under Malaysia’s Sedition Act; the hacking in November 2014 of Sony Pictures Entertainment by ‘Guardians of Peace’, a group with ties to North Korea, which also threatened violence against cinemas showing the political comedy film ‘The Interview’, causing Sony Pictures Entertainment to scale back on its release to cinemas; and the actual and attempted blocking by a number of states of the anti-Islamic film trailer ‘Innocence of the Muslims’, which was posted on YouTube in July 2012.
- 3 See Report of the Special Rapporteur on freedom of religion or belief, Heiner Bielefeldt, 29 December 2014, A/HRC/28/66 at para 15. See also Council of Europe Committee of Ministers, Declaration on the recent attacks in Paris, adopted at 1215th meeting of the Ministers’ Deputies, 14 January 2015. For an indication of increasing hostilities in the name of religion over recent years, see also Pew Research Center, *Religious Hostilities Reach a Six Year High*, January 2014, available at: www.pewforum.org [last accessed 8 March 2018]; US Department of State, Bureau of Democracy, Human Rights and Labor, *International Religious Freedom Report 2015*, available at: 2009-2017.state.gov [last accessed 8 March 2018].
- 4 Editorial, ‘A Murderous Attack on Freedom of Expression’, *Financial Times*, 7 January 2015. See also Editorial, ‘Free Speech under Attack’, ‘The muzzle grows tighter’, ‘Muted by machetes’, ‘The colliding of the American mind’, *The Economist*, 4 June 2016.
- 5 Such incidents include, most notably, the suicide bombings and shootings in Paris, including at the Bataclan theatre on 13 November 2015, which killed 137 people, and the deliberate driving of a truck into crowds celebrating Bastille Day in Nice on 14 July 2016, which resulted in the death of 86 people. There were also other terrorist attacks in Europe such as those on Ankara in October 2015 and March 2016; Brussels in March 2016, Istanbul Atatürk Airport in June 2016; Munich in July 2016; and Berlin in December 2016.
- 6 Attacks in the United States since the *Charlie Hebdo* massacre include the shooting at the Curtis Culwell Center, which was hosting an exhibit featuring cartoons of Muhammed in Garland, Texas, on 3 May 2015, and the shooting and attempted bombing in San Bernardino, California on 2 December 2015, which killed 22 people.
- 7 The mother of Adel Kermiche, the perpetrator of the attack on a Normandy church on 26 July 2016, speaking on 22 May 2015 stated that ‘the killing of *Charlie Hebdo* acted as a detonator’: see *Tribune de Genève*, ‘La détresse des parents du terroriste Adel Kermiche’, 26 July 2016.

states' responses to such violence and the radicalisation that is assumed to underpin it appears to embed a paradigmatic shift towards 'preventing' or 'countering violent extremism'.⁸ At the beginning of 2017, a new challenge to freedom of expression surfaced with a declaration of 'war' on the media by President Donald Trump, who has labelled journalists as 'among the most dishonest beings on earth'.⁹

This article considers the significance of the *Charlie Hebdo* attacks and responses to them from the perspective of international human rights law on the freedom of expression. It focuses on the recent positions taken by international human rights bodies, including in direct response to the attacks, whilst acknowledging their normative bases. As part of ongoing scholarly reflections on the implications of the attacks, it unravels and explores three distinct and influential narratives concerning freedom of expression that have developed amongst a range of actors, including these bodies, in the three years since the attacks took place.¹⁰ Section 2, 'Freedom of Expression as Identity', recalls how the *Charlie Hebdo* attacks spurred an outpouring of political declarations concerning freedom of expression, but also laid bare the deep and long-standing cultural divisions surrounding this right. Section 3, 'Freedom of Expression as a Human Right', unpacks the various ways in which the *Charlie Hebdo* attacks and states' responses to them engage provisions of international human rights law, particularly Articles 19 of the Universal Declaration on Human Rights (UDHR) and the International Covenant on Civil and Political Rights (ICCPR) concerning freedom of opinion and expression.¹¹ Section 4, 'Freedom of Expression as Part of the Problem', turns to examining international approaches to preventing and countering violent extremism (PVE and CVE), which draw upon and support states' own policies in the field. This article shows that international human rights law on the freedom of expression—particularly on the right to be protected from physical attack, the right to offend religious believers, including through forms of art, and with respect to prohibitions on blasphemous speech—is well-established and should critically frame states' policies in response to such attacks. It also demonstrates how evolving approaches towards violent extremism, including those of United Nations (UN) human rights bodies themselves, may serve to undermine the same normative framework of international law on freedom of expression. This article therefore exposes the contrasts between the three narratives, whilst revealing the

8 Miner, 'Crackdowns on Free Speech Rise across a Europe Wary of Terror', *The New York Times*, 24 February 2016.

9 Grynbaum, 'Donald Trump's News Session Starts War With and Within Media', *The New York Times*, 11 January 2017; Rucker, Wagner and Miller, 'Trump Wages War against the Media as Demonstrators Protest His Presidency', *Washington Post*, 21 January 2017.

10 For reflections on the attacks, see, in particular, Callamard, 'Religion, Terrorism and Speech in a "Post-Charlie Hebdo" World' (2015) 10 *Religion and Human Rights* 207; Keane, 'Cartoons, Comics and Human Rights after the *Charlie Hebdo* Massacre' (2015) 10 *Religion and Human Rights* 229; Benesch, 'Charlie the Freethinker: Religion, Blasphemy and Decent Controversy' (2015) 10 *Religion and Human Rights* 244; Cox, 'The Freedom to Publish "Interreligious" Cartoons' (2016) 16 *Human Rights Law Review* 195; Cox, 'Blasphemy and Defamation of Religion Following Charlie Hebdo' in Temperman (ed.), *Blasphemy and Freedom of Expression: Comparative, Theoretical and Historical Reflections after the Charlie Hebdo Massacre* (2017) at 53–84; Titley et al., *After Charlie Hebdo: Terror, Racism and Free Speech* (2017).

11 Universal Declaration of Human Rights 1948, GA Res 217A (III), A/810 at 71 (1948); International Covenant on Civil and Political Rights 1966, 999 UNTS 171.

inconsistencies and tensions within them, as they are anything but internally unified and coherent.

2. FREEDOM OF EXPRESSION AS IDENTITY

The *Charlie Hebdo* attacks provoked an outpouring of reactions from around the world in their immediate aftermath. Many of these responses centred around freedom of expression—including those from states' leaders, intergovernmental figures, religious authorities, media commentators, members of the public and, of course, non-governmental organisations (NGOs) in the field, such as ARTICLE 19, Committee to Protect Journalists and Media Legal Defence Initiative.¹² 'Freedom of expression' as such—beyond the narrower notions of 'freedom of the press' or 'freedom of the media', or the similar First Amendment inspired concept of 'freedom of speech'—was located at the epicentre of the whirlwind of reflections, a pivotal idea and powerful symbol, capturing but also polarising attention around the world. Freedom of expression as a rallying point was repeatedly invoked, hailed, qualified and contested in France, across Europe and internationally in a way that has seldom been seen in modern times.¹³ Whether through its express affirmation, qualification or denial, freedom of expression drew considerable global attention in the period following the attacks. The positions taken towards freedom of expression in the speeches and statements of political leaders and others stood as markers of their identity. The constitutive function of freedom of expression for democracies—which is reflected in the right's express recognition in states' domestic constitutional law, international and regional treaties which they have ratified, notably the ICCPR and the European Convention on Human Rights (ECHR), as well as the European Union (EU) Charter of Fundamental Rights¹⁴—was thus brought into sharp relief in the wake of the *Charlie Hebdo* attacks.

Consider the swelling of high-level support for freedom of expression in their wake. A 'universal belief in the freedom of expression', as President Barack Obama stated, or an 'unfailing attachment to freedom of expression' as a universal value, as the Joint Statement of the Ministers of the Interior of the EU put it later, framed the outrage of

12 See ARTICLE 19, 'France: ARTICLE 19 Condemns Attack on Offices of *Charlie Hebdo* Magazine', 7 January 2015; Committee to Protect Journalists, 'CPJ Condemns Murderous Attack on French Magazine *Charlie Hebdo*', 7 January 2015; Media Legal Defence Initiative, '*Charlie Hebdo* Attack is an Attack on Democracy', 7 January 2015; Index on Censorship, 'Index on Censorship Statement on Blasphemy Debate Attack in Copenhagen', 14 February 2015.

13 On the 'Danish cartoons crisis', see Klausen, *The Cartoons that Shook the World* (2009); Keane, 'Cartoon Violence and Freedom of Expression' (2008) 30 *Human Rights Quarterly* 845; Cram, 'The Danish Cartoons, Offensive Expression, and Democratic Legitimacy' in Hare and Weinstein (eds), *Extreme Speech and Democracy* (2010) 311.

14 Convention for the Protection of Human Rights and Fundamental Freedoms 1950, ETS 005; Charter of Fundamental Rights of the European Union [2000] OJ C 364/1. At the domestic level, freedom of expression is protected through states' constitutions from the First Amendment of the United States Constitution of 1791 to the Tunisian Constitution of 2014, as well as through constitutional jurisprudence of states without codified constitutions such as the UK, Israel and New Zealand. Article 19 of the ICCPR, Article 10 of the ECHR and Article 11 of the EU Charter on Fundamental Rights protect freedom of expression. On how the ICCPR and the ECHR are engaged by the attacks on *Charlie Hebdo*, see Section 3 below.

many other world leaders to the Paris attacks.¹⁵ A series of intergovernmental figures expressed similar sentiments. The UN Secretary-General, Ban Ki-moon, identified the murders in Paris as ‘an attack against freedom of expression and freedom of the press – the two pillars of democracy’, while the UN High Commissioner for Human Rights, Zeid Ra’ad Al Hussein, reflected on the importance of freedom of expression for the post-World War II world order.¹⁶ David Kaye, the UN Special Rapporteur on the protection and promotion of freedom of opinion and expression, pointed out that the attack on *Charlie Hebdo* was ‘one of the gravest attacks on journalists and a free press in recent history’.¹⁷ Strong condemnations came from the Organisation of Islamic Cooperation, and many Muslim states individually too, though these appeared to hinge much less on a commitment to freedom of expression, if at all.¹⁸ States with significant Muslim populations, such as Mauritius and the Philippines, and Muslim organisations, such as the Council on American-Islamic Relations, however, did affirm freedom of expression as a value and right in their denunciations of the attacks.¹⁹ People took to the streets of Paris and major Western cities—including London, Brussels, New York, Montreal, Jerusalem, Istanbul, Sydney and Tokyo—in record numbers in an apparent gesture of collective solidarity against the Paris attacks and for free speech. The public outpouring was amplified and concentrated online. As a meme and slogan, ‘*Je Suis Charlie*’ took hold on social media, with the Twitter hashtag #JeSuisCharlie reportedly tweeted more than five million times by 22:00 GMT, on Friday, 9 January, two days after the attack.²⁰

At the same time, significant splits in global attitudes towards freedom of expression were apparent very soon afterwards. Indeed, on the very same day, Iran’s Foreign Ministry spokeswoman Marzieh Afkham commented that ‘all acts of terrorism against innocent people are alien to the doctrine and teachings of Islam’, but

- 15 Remarks by the President on the Terrorist Attack in Paris, 7 January 2015, available at: obamawhitehouse.archives.gov [last accessed 8 March 2018]; Council of the European Union, Joint Statement of the Ministers of the Interior and/or Justice adopted at the Ministerial meeting held on 11 January 2015 in Paris (‘Paris Declaration’), 16 January 2015, 5322/15.
- 16 Statement by UN High Commissioner for Human Rights Zeid Ra’ad Al Hussein at the commemoration at Palais des Nations, Geneva, for the victims of the *Charlie Hebdo* attack in Paris, 9 January 2015. See also UN Press Centre, ‘Ban Outraged by “Horrendous and Cold-blooded” Attack on French Magazine’, 7 January 2015.
- 17 Office of the High Commissioner for Human Rights, ‘UN Special Rapporteur on Freedom of Expression Condemns Attack on Journalists in Paris’, 7 January 2015. See also OSCE, ‘OSCE Media Freedom Representative Strongly Condemns Attack on Participants at the Event “Art, Freedom of Speech and Blasphemy” in Copenhagen’, 15 February 2015; OSCE, ‘OSCE Media Freedom Representative Strongly Condemns Horrific Attack at French Satirical Magazine Charlie Hebdo’, 7 January 2015.
- 18 See generally, Bloomberg News, ‘Islamic Leaders Condemn Paris Attack: Some Warn on Backlash’, 7 January 2015; Algeria Press Service, ‘President Bouteflika Strongly Condemns Terrorist Attack on French Paper’, 7 January 2015; Office of the President, Islamic Republic of Afghanistan, ‘President Ghani Strongly Condemns Attacks in Paris’, 8 January 2015; Organisation of Islamic Cooperation, ‘OIC Strongly Condemns the Terrorist Attack on Charlie Hebdo, France’, 7 January 2015.
- 19 Department of Foreign Affairs of the Republic of the Philippines, ‘DFA Statement on the Attacks in Paris’, 8 January 2015; Republic of Mauritius, ‘PM Condemns Terrorist Attack on Charlie Hebdo’, 12 January 2015; Council on American-Islamic Relations, ‘US Muslims Condemn Paris Terror Attack, Defend Free Speech’, 7 January 2015. Also the Muslim Canadian Congress tweeted ‘MCC condemns barbaric Islamist attack in Paris on Freedom of Expression #ParisShooting’ the same day as the attacks.
- 20 ‘Charlie Hebdo Shooting: #JeSuisCharlie Tweeted More Than Five Million Times’, *ABC News*, 11 January 2015.

'making use of freedom of expression . . . to humiliate the monotheistic religions and their values and symbols is unacceptable.'²¹ Somewhat surprisingly, a week after the attacks, Pope Francis said 'you cannot insult [or] make fun of the faith of others'.²² Turkey's Prime Minister Ahmet Davutoğlu called the reproduction of a selection of the Charlie Hebdo's cartoons in the daily *Cumhuriyet's* coverage of the Paris attacks 'grave provocation', stating that 'freedom of expression does not mean the freedom to insult'.²³ The publication of the 'survivors issue' featuring a cartoon of the Prophet Mohammed with a 'Je Suis Charlie' sign under the caption 'Tout Est Pardonné' ('All Is Forgiven') on 14 January, provoked criticism from leaders of Muslim states. The OIC's Independent Permanent Human Rights Commission was 'appalled by the . . . repeated publication of sacrilegious caricature of Prophet Mohammad . . . and squarely [condemned it]'.²⁴ In its view, the publication 'further exacerbated the existing debate on the limits of freedom of expression by converting the so-called "right to offend" into a "duty to offend" and was an "extreme act of malicious provocation and hatred based on ill-founded presumption of the right to insult and defame the faith, values and cultures of others in the name of freedom of expression"'.²⁵ The issue also fuelled violent protests across the Muslim world—in Afghanistan, Algeria, Gaza, Iran, Jordan, Kuwait, Lebanon, Niger, Pakistan, Sudan, Tunisia and Turkey—prompting *The Economist* to suggest that 'free speech is . . . in many places at best a wavering ideal'.²⁶

Divergences in political positions towards freedom of expression were coupled with the exposed hypocrisy of many political leaders' public posturing in support of the right in light of the actual records of their states. Prime ministers, ministers and high ranking officials from states with seriously troubling freedom of expression records—notably Egypt, Bahrain, Algeria, the United Arab Emirates, Turkey, Gabon, Russia and Hungary—were amongst world leaders at the head of the rally of 1.5 million which marched down Boulevard Voltaire on 11 January 2015.²⁷ Such leaders' gestures in support of freedom of expression in the immediate wake of the Paris attacks contrasted markedly with their domestic practices and policies. Perhaps the strangest presence on the 'Unity March' was that of the ambassador of Saudi Arabia to France who attended the Paris rally just two days after his state flogged the activist Raif Badawi 50 times, in the first in a series of 1,000 lashes, a sentence to be carried out over 20 weeks as punishment for insulting Islam. Saudi Arabia's double standards on respect for freedom of expression and freedom of religion or belief were further highlighted when the state hosted the fifth meeting of the so-called

21 Radio Free Europe Radio Liberty, 'Iranian Journalists Stopped From Showing Solidarity with Paris Victims', 8 January 2015.

22 Hohlheiser, 'Pope Francis on Charlie Hebdo: "You cannot insult the faith of others"', *Washington Post*, 15 January 2015.

23 Amnesty International USA, 'Turkey: Criminal Probe into Newspaper's Coverage of Charlie Hebdo a Chilling Blow to Freedom of Expression', 15 January 2015.

24 OIC, 'IPHRC Strongly Condemns the Recent Publication of Blasphemous Caricatures of Prophet Mohammad (PBUH) by the French Magazine Charlie Hebdo', 18 January 2015.

25 Ibid.

26 'Freedom of Speech: The Sound of Silence', *The Economist*, 24 January 2015.

27 Williams, 'Paris Anti-terror Rally: Why I Called Out Hypocritical World Leaders on Twitter', *The Guardian*, 13 January 2015.

Istanbul Process on the implementation of Human Rights Council Resolution 16/18 on combating of religious intolerance and discrimination in Jeddah on 3 and 4 June 2015.²⁸

The *Charlie Hebdo* attacks also brought to the surface underlying challenges of identity politics and racism in France and in Europe more generally, which demanded a deeper consideration of the context of the attacks.²⁹ Many commentators rejected the meme ‘*Je Suis Charlie*’ because, notwithstanding their condemnation of the attacks and support for freedom of expression, they refused to be identified with the content of *Charlie Hebdo*’s messages and/or sought the recognition of the Jewish and Muslim identities of other victims of the attacks.³⁰ That original slogan and its adaptation, ‘*Je Ne Suis Pas Charlie*’, were seen to ‘play into a cheap binary that serves neither the massacre victims nor the discourse around free speech and Islamophobia that surrounds the killings’.³¹ In an astute and sobering appeal for a transcending of such dichotomies written shortly after the attacks, Titley reflected that ‘it is possible . . . to oppose an assault on free speech, while also insisting on the hypocrisies, inequalities and elisions that undermine the idea that free speech is a cornerstone of “the West”’ and ‘to defend a universal right to free expression, while noting the strange contemporary relativism that has little interest in the content, context and consequences of what is expressed’.³²

The freedom of expression-focused responses to the attacks in Paris and Copenhagen—from political leaders, the public or commentators—also should be seen against a broader historical perspective. After all, the *Charlie Hebdo* attacks stand as the most recent episode in the ‘modern history of freedom of expression’ and ‘religious censorship’.³³ Its antecedents stretch back more than a quarter of a century, encompassing the violence that spread across continents following the release of the ‘Innocence of Muslims’ video in June 2012, the publication of cartoons of the Prophet Mohammed by the Danish newspaper *Jyllands-Posten* in November 2005 and the publication of Salman Rushdie’s *Satanic Verses* in September 1988, which prompted Ayatollah Ruhollah Khomeini, the Supreme Leader of Iran, to issue a *fatwa* on Salman Rushdie in February 1989.³⁴ Yet the latest global preoccupation with

28 HRC Res 16/18 on combating intolerance, negative stereotyping and stigmatization of, and discrimination, incitement to violence and violence against, persons based on religion or belief, 24 March 2011, A/HRC/RES/16/18. On criticism of the meeting in Jeddah, see Committee for Inquiry, Statement to the 28th session of the Human Rights Council (General Debate on Item 4), 17 March 2015; Amnesty International, ‘Saudi Arabia: Every Lash of Raif Badawi Defies International Law’, 11 June 2015; Agence France-Presse, ‘Saudi Supreme Court Upholds Verdict against Blogger Raif Badawi’, *The Guardian*, 7 June 2015; Withnall, ‘Saudi Arabia Hosts UN Backed Rights Summit on “Combating Religious Discrimination”’, *The Independent*, 8 June 2015.

29 See, for instance, Lentin, ‘Charlie Hebdo and the Appeal for French Context’, *Public Seminar*, 11 June 2015.

30 Brooks, ‘I Am Not Charlie’, *The New York Times*, 8 January 2015. In the wake of the attacks, alternative hashtags #JeSuisAhmed and #JeSuisHyperCacher also emerged on Twitter.

31 Lennard, ‘“Je Suis Charlie” and “Je Ne Suis Pas Charlie” are Both the Wrong Responses to the Paris Massacre’, *Vice News*, 14 January 2015.

32 Titley, ‘Discussing Charlie Hebdo’, *Irish Left Review*, 15 January 2015.

33 Barbas, ‘Book Review: The Cartoons that Shook the World by Jytte Klausen’ (2010–11) 26 *Journal of Law and Religion* 629 at 632.

34 See supra n 13.

freedom of expression and its limits is distinguished from these earlier episodes, including the ‘Danish cartoons controversy’, in one fundamental respect: the heightened role of online media, particularly social media platforms, in disseminating information and ideas instantaneously and globally. In today’s rapidly changing technological environment, in which the Internet provides the principal forum for the exercise of freedom of expression, intermediaries exert a critical influence in the facilitation and also curtailment of rights.³⁵ Significant increases in Internet penetration over the past two decades have radically transformed the possibilities for dissemination of speech, including speech that causes offence to religious sensibilities and for the condemnation of such speech. When the *fatwa* was imposed on Rushdie in 1989, there were no official statistics on Internet penetration and the proposal for the World Wide Web was still to be presented by Sir Tim Berners-Lee.³⁶ There are more parallels between the *Charlie Hebdo* affair and the Danish cartoons’ crisis, which also involved offensive portrayals of the Prophet Mohammed and first saw ‘cell phones and the Internet as new means of global political mobilisation, communication, and even the deployment of virtual violence.’³⁷

Yet Internet penetration and the impact of social media platforms have massively changed the landscape for freedom of expression. According to the International Telecommunications Union, by the time of the Danish cartoons’ controversy in 2005, there were 1,024 billion Internet users (15.8 per cent penetration), three-fifths of whom were in developed states.³⁸ A decade later, at the time of the *Charlie Hebdo* affair in January 2015, there were 3,174 billion Internet users (43.4 per cent penetration), with twice as many Internet users in developing states than developed ones.³⁹ By 2015, more than half of Internet users (1,506 billion) were located in the Asia-Pacific region and there were 141 million in Arab states.⁴⁰ Moreover, social media platforms, notably Twitter and Facebook, which presented key forums for debate about Charlie Hebdo’s messages and tools for solidarity movements following the attacks, simply did not exist in 2005.⁴¹ Technological advances have thus exploded the reach of expression that is deemed offensive, but also the scale of global contests

35 Report of the Special Rapporteur on the promotion and protection of the right to freedom of opinion and expression, David Kaye (on the private sector and freedom of expression in a digital age), 11 May 2016, A/HRC/32/38.

36 See History of the Web, available at: webfoundation.org/about/vision/history-of-the-web/ [last accessed 8 March 2018].

37 Jytte Klausen also argues that the Danish cartoons became ‘the foils for the deliberate manipulation of political actors—see both national and transnational, state actors and non-state actors—who were already engaged in battle’: see Klausen, *supra* n 13 at 47.

38 According to the data on information and communication technologies (ICT data), the number of Internet users in 2005 in developed states was 616 million and in developing states was 408 million. See the key 2005–15 ICT data for the world from International Telecommunications Union, available at: www.itu.int/en/ITU-D/Statistics/Pages/stat/default.aspx [last accessed 8 March 2018].

39 In 2015, the number of Internet users in developed states was 1,035 billion and in developing states was 2,139 billion: *ibid*.

40 *Ibid*. On the political, economic and geopolitical factors steering Internet freedom policies, see Powers and Jablonski, *The Real Cyber War: The Political Economy of Internet Freedom* (2015).

41 Twitter was launched on 21 March 2006 whereas public access to Facebook was opened on 26 September 2006. On the role of social media, see: Martinson, ‘Charlie Hebdo: A Week of Horror when Social Media Came into Its Own’, *The Guardian*, 15 January 2015; Hubbard, ‘Jihadists and Supporters Take to Social Media to Praise Attack on Charlie Hebdo’, *The New York Times*, 10 January 2015.

over such speech. In the aftermath of the attacks, the expanding possibilities for the online dissemination of offensive content, and the so-called ‘hate speech’ in particular, have become a point of major policy concern in European states.⁴² This development is set to continue following the presentation in May 2016 of European Commission’s ‘Code of Conduct on Countering Illegal Hate Speech Online’, which has been endorsed by Facebook, Twitter, YouTube and Microsoft, and has been followed with legislative responses at the domestic level, particularly in Germany.⁴³

3. FREEDOM OF EXPRESSION AS A HUMAN RIGHT

This Section now considers how Article 19 of the ICCPR, which is based on Article 19 of the UDHR, is implicated by the actions of the assailants of the *Charlie Hebdo* satirists and the work of the satirists themselves. As at 1 May 2018, Article 19 of the ICCPR has been ratified by 170 states and signed by six states with 21 states, most notably Saudi Arabia, Malaysia and Myanmar, taking no action.⁴⁴ Article 19(2) of the ICCPR obliges ratifying states to ensure that ‘[e]veryone shall have the right to freedom of expression; this right shall include freedom to seek, receive and impart information and ideas of all kinds, regardless of frontiers, either orally, in writing or in print, in the form of art, or through any other media of his choice.’ Under Article 19(3) of the ICCPR, states may impose ‘certain restrictions, but these shall only be such as are provided by law and are necessary’ for the achievement of particular objectives, namely ‘respect of the rights or reputations of others’ or ‘protection of national security or of public order (*ordre public*), or of public health or morals’. Article 20(2) of the ICCPR subsequently provides that ‘any advocacy of national, racial or religious hatred that constitutes incitement to discrimination, hostility or violence shall be prohibited by law’. These treaty provisions are clearly legally binding on those states that have agreed upon their terms and have ratified them. Moreover, their interpretation by UN human rights bodies—in particular the Human Rights Committee’s authoritative interpretation of Article 19 of the ICCPR, General Comment No 34—are valuable as analytical tools for assessing states’

42 Kaye, ‘How Europe’s New Internet Laws Threaten Freedom of Expression’, *Foreign Affairs*, 18 December 2017.

43 European Commission, Code of Conduct on Countering Illegal Hate Speech Online, 31 May 2016; Council Framework Decision 2008/913/JHA of 28 November 2008 on combating certain forms and expressions of racism and xenophobia by means of criminal law, OJ L 328, 6 December 2008, at 55–8 (the legal basis for the code); German Network Enforcement Act (NetzDG), 30 June 2017, entered into force 1 October 2017, Federal Law Gazette 2017 I, Nr 61, at 3352. For a critique of the Commission’s code, see ARTICLE 19, ‘Legal Analysis: the European Commission’s Code of Conduct for Countering Illegal Hate Speech Online and the Framework Decision’, 20 June 2016. For critiques of NetzDG, see: ARTICLE 19, ‘Germany: The Act to Improve Enforcement of the Law in Social Networks’, August 2017; Mong, ‘As German Hate Speech Law Sinks Titanic’s Twitter Post, Critics Warn New Powers Go Too Far’, *Committee to Protect Journalists Blog*, 23 January 2018; Human Rights Watch, ‘Germany: Flawed Social Media Law’, 14 February 2018.

44 See Status of Ratification Interactive Dashboard, available at: indicators.ohchr.org/ [last accessed 1 May 2018].

responses to the attacks, 'bringing into the discussion the carefully negotiated elaborations of the meaning of specific rights that have emerged from decades of reflection, discussion and adjudication'.⁴⁵ International law is especially germane to issues of freedom of expression because of the inherent transnational quality of the right whose exercise is recognised as being 'regardless of frontiers'.⁴⁶

A. The Right to Be Protected from Attack

The attack on Charlie Hebdo's satirists most clearly engages freedom of expression because it targeted individuals who depended on the exercise of that right for a living. The incident pushed France to the top of the Committee to Protect Journalists' annual league table of 'deadliest countries' in 2015, second only to Syria and ahead of states such as Iraq, Bangladesh, Mexico and Somalia that year.⁴⁷ It also stands as the second deadliest event for journalists in recent history, following the Maguindanao massacre in the Philippines that claimed the lives of 32 journalists on 23 November 2009.⁴⁸ The attack deprived the victims of exercising their freedom of expression in the most extreme way, through the ultimate act of prior censorship, and was also a symbolic assault on freedom of expression given that the magazine had long seen itself as a champion of this right.⁴⁹

Over recent years there has been a remarkable profusion of international and regional standards and initiatives on the protection and safety of journalists.⁵⁰ Indeed, no other freedom of expression issue attracts such a level of consensus across states. This body of international human rights standards includes a new Security Council resolution on the protection of 'journalists, media professionals and associated personnel in armed conflict' adopted in May 2015⁵¹ and a set of Human Rights Council and General Assembly resolutions on the safety of journalists.⁵² International soft

45 Human Rights Committee, General Comment No 34: Article 19: Freedom of Opinion and expression, 21 July 2011; Report of the Special Rapporteur on extreme poverty and human rights, Philip Alston, 4 August 2015, A/70/274, at para 65.

46 See Report of the Special Rapporteur on freedom of opinion and expression, David Kaye, 22 May 2015, A/HRC/29/32, at para 25.

47 The victims of the attacks on the attacks on *Charlie Hebdo* were Stephane Charbonnier ('Charb'), Bernard Maris ('Uncle Bernard'), Jean Cabut ('Cabu'), Bernard Verlhac ('Tignous'), Georges Wolinski, Philippe Honoré, Mustapha Ourad and Elsa Cayat. The Committee to Protect Journalists counted 14 journalists killed in Syria and 73 journalists killed worldwide in 2015, with the motive confirmed: see cpj.org/killed/2015/ [last accessed 8 March 2018]. Applying different methodology, the International Press Institute, 'Death Watch' counted 115 journalists killed worldwide in 2015, available at: ipi.media/programmes/death-watch/ [last accessed 8 March 2018].

48 Griffen, *Justice Delayed: The Maguindanao Massacre, Two Years On. An In-Depth Look at the Quest to Combat Impunity* (International Press Institute, 22 November 2012).

49 UNESCO, 'UNESCO Director-General Condemns Attack on Charlie Hebdo', 7 January 2015.

50 On protection of journalists, see generally Parmar, 'The International Protection of Journalists' in Onur Andreotti (ed.), *Journalism at Risk: Threats, Challenges and Perspectives* (2015) 37.

51 See SC Res 2222, 27 May 2015, S/RES/2222 (2015). This builds on SC Res 1738, 23 December 2006, S/RES/1738 (2006).

52 See HRC Res 21/12, 27 September 2012, A/HRC/RES/21/12; HRC Decision 24/116, 26 September 2013, A/HRC/DEC/24/116; Summary of the Human Rights Council panel discussion on the safety of journalists prepared by the Office of the High Commissioner for Human Rights, 2 July 2014, A/HRC/27/35 (Advanced United Version); HRC Res 27/5, 2 October 2014, A/HRC/RES/27/5; HRC Res 27/5, 25 September 2014, A/HRC/RES/27/5; GA Res 68/163, 18 December 2013 (declaring 2 November

law standards include the recommendations of two individual UN mandate-holders on the subject and the Joint Declaration on Crimes against Freedom of Expression of the four international mechanisms for promoting freedom of expression.⁵³ Over recent years, there has also been the adoption of numerous United Nations Educational, Scientific and Cultural Organization (UNESCO) declarations and decisions,⁵⁴ the United Nations Plan of Action on the Safety of Journalists and the Issue of Impunity⁵⁵ and the biennial publication of the UNESCO Director-General's Report on the Safety of Journalists and the Danger of Impunity.⁵⁶ Regional bodies, notably the Organization for Security and Co-operation in Europe (OSCE) Representative on Freedom of the Media, have prioritised the protection of journalists and other media workers in their work.⁵⁷ Key institutions of the Council of Europe have developed a number of relevant instruments and have established an innovative online 'Platform to promote the protection of journalism and safety of journalists' to bring information about physical threats to journalists and media workers to the attention of its bodies.⁵⁸ In April 2016, the Council of Europe's Committee of Ministers also adopted a recommendation on protection of journalism and the safety of journalists and other media actors.⁵⁹ For its part, the Council of the EU has

the 'International Day to End Impunity for Crimes Against Journalists', A/RES/68/163; GA Res 69/185, 18 December 2014, A/RES/69/185; GA Res 70/162, 17 December 2015, A/RES/70/162; HRC Res, 29 September 2016, A/HRC/RES/33/2.

- 53 Report of the Special Rapporteur on the promotion and protection of the right to freedom of opinion and expression, Frank la Rue, 4 June 2012, A/HRC/20/17; Report of the Special Rapporteur on extrajudicial, summary or arbitrary executions, Christof Heyns, 10 April 2012, A/HRC/20/22; Joint Declaration on Crimes Against Freedom of Expression, June 2012. See also Report of the Secretary-General on the protection of civilians in armed conflict, 22 May 2012, S/2012/376 at paras 5, 14 and 15.
- 54 See World Press Freedom Day declarations, particularly Carthage Declaration, 3 May 2012, San José Declaration, 4 May 2013, Paris Declaration, 6 May 2014, and Riga Declaration, 4 May 2015. See also UNESCO General Conference Resolution 29 on condemnation of violence against journalists, 12 November 1997; Belgrade Declaration on Support to Media in Violent Conflict and in Countries in Transition, 3 May 2004; Medellín Declaration on Securing the Safety of Journalists and Combating Impunity, 4 May 2007; and International Programme for the Development of Communication (IPDC) decisions on the safety of journalists and impunity of 27 March 2008, 10 March 2010, 23 March 2012 and 21 November 2014.
- 55 UNESCO, International Programme for the Development of Communication (IPDC), *UN Plan of Action on the Issue of the Safety of Journalists and the Issue of Impunity*, April 2012, CI-12/CONF.202/6; UNESCO, *Journalists' Safety Indicators: International Level*, 25 July 2013; UNESCO, *Journalists' Safety Indicators: National Level*, 25 July, 2013; UNESCO, *Applying UNESCO's Journalists' Safety Indicators (JSIs): A Practical Guidebook to Assist Researchers*, 25 July 2013.
- 56 For the latest report, see UNESCO, International Programme For the Development of Communication, Report by the Director-General to the Intergovernmental Council of the IPDC (Thirtieth Session), CI-16/COUNCIL-30/4 Rev, 7 October 2016.
- 57 See notably, OSCE Representative on Freedom of the Media, 'Vilnius Recommendations on the Safety of Journalists', 8 June 2011, CIO.GAL/111/11; OSCE Representative on Freedom of the Media, *Safety of Journalists Guidebook*, 2nd edn (2014).
- 58 See, most recently, Parliamentary Assembly of the Council of Europe, Resolution 2035 (2015) on the protection of the safety of journalists and of media freedom in Europe, 29 January 2015; Committee of Ministers, Declaration on the protection of journalism and safety of journalists and other media actors adopted, 30 April 2014, 1198th meeting of the Ministers' Deputies; Council of Europe Committee of Ministers, Resolution 3 on the safety of journalists, 3 November 2013. See also the online platform, available at: www.coe.int/web/media-freedom [last accessed 8 March 2018].
- 59 Committee of Ministers, Recommendation CM/Rec(2016)4 on the protection of journalism and safety of journalists and other media actors, 13 April 2016, at the 1253rd meeting of the Ministers' Deputies.

identified as a priority the fight against ‘violence, persecution, harassment and intimidation of individuals, including journalists and other media actors . . . and . . . impunity for such crimes’ in the EU Human Rights Guidelines on Freedom of Expression Online and Offline.⁶⁰

Notwithstanding these global and regional instruments and initiatives, the Human Rights Committee’s General Comment No 34 and the jurisprudence of the European Court of Human Rights (ECtHR) on Articles 2 (on the right to life) and 10 (on freedom of expression) of the ECHR remain the most compelling benchmarks for European states, in particular for but not only France, in constructing their responses to the *Charlie Hebdo* attacks.⁶¹ Clearly, the killing of *Charlie Hebdo*’s journalists and satirists could not be justified by the manner in which those individuals exercised their freedom of expression.⁶² In accordance with General Comment No 34, the attacks demanded to ‘be vigorously investigated in a timely fashion’, the victims’ families ought to be given ‘appropriate forms of redress’ and there should be ‘in place effective measures to protect against attacks aimed at silencing those exercising their right to freedom of expression’.⁶³ In addition, all states are obliged to put in place an appropriate framework of criminal justice, including the ‘law enforcement machinery for the prevention, suppression and sanctioning’ of violations of the right to life and specific ‘operational measures to protect an individual whose life is at risk from the criminal acts of another individual’.⁶⁴ According to ECtHR jurisprudence, state authorities should also apply such positive measures to protect the meaningful exercise of freedom of expression, particularly when they ‘knew or ought to have known . . . of a real and immediate risk’ to the lives of those exercising it for a living, such as journalists.⁶⁵ In assessing whether states have failed to ‘take reasonable measures . . . to prevent [such] a real and immediate risk to . . . life’, the extent to which such authorities ‘ought to have been aware of the vulnerable position in which a journalist who covered politically sensitive topics placed himself/herself *vis-à-vis* those in power at the material time’ should be taken into account.⁶⁶ With respect to these standards, one could argue that the French authorities had met their duty to protect *Charlie Hebdo*’s journalists who they certainly knew were vulnerable to attack; police protection officers were reportedly posted outside the offices since 2006 and one of the victims, Stéphane Charbonnier or ‘Charb’, had been allocated his own personal protection officers since 2011.⁶⁷

In addition, states have a duty to create a positive climate for the exercise of freedom of expression—a ‘favourable environment for full participation in public debates

60 Council of the European Union, EU Human Rights Guidelines on Freedom of Expression, Brussels, 12 May 2014.

61 General Comment No 34, *supra* n 45.

62 *Ibid.* at para 23.

63 *Ibid.* at paras 7 and 23.

64 *Osman v United Kingdom* Application No 23452/94, Merits and Just Satisfaction, 28 October 1998 (Grand Chamber) at para 115.

65 *Ozgur Gundem v Turkey* Application No 23144/93, Merits and Just Satisfaction, 16 March 2000 at para 43; *Kılıç v Turkey* Application No 22492/93, Merits and Just Satisfaction, 28 March 2000 at para 63.

66 *Gongadze v Ukraine* Application No 34056/02, Merits and Just Satisfaction, 8 November 2005 at paras 166 and 168.

67 Cloarec, ‘The French Police Are Protecting Journalists in the Wake of the “Charlie Hebdo” Attack’, *Vice*, 9 January 2015.

by all persons concerned, enabling them to express their opinions and ideas without fear, even if such opinions and ideas are contrary to those held by the authorities or a significant share of public opinion, or viewed as offensive or shocking'.⁶⁸ The effective implementation of this positive duty faces its gravest obstacle in what Garton Ash in his magisterial work *Free Speech: Ten Principles for a Connected World* has called the 'assassin's veto'—the silencing of individuals through their murder and through the 'chilling effect' or self-censorship that takes hold of others as a result of their fear of being physically attacked and perhaps even killed themselves.⁶⁹ The silencing of the *Charlie Hebdo* victims was fundamentally connected to their explicit position towards freedom of expression: the magazine's journalists were targeted and lost their lives precisely because of their defiant lampooning of Islam, particularly the Prophet Mohammed. Similarly, the victims of the café shooting in Copenhagen were targeted because of their attendance at a discussion on free speech, art and blasphemy. But it was the power of the fear of further attacks, rather than respect for the victims, that critically shaped the responses of the media across many countries.⁷⁰ Garton Ash notes how Denmark's *Jyllands-Posten* also refrained from republication with Flemming Rose, its editor who had commissioned the cartoons at the centre of the Danish cartoons crisis of 2005 and 2006, lamenting: 'We caved in. Violence works. Sometimes the sword is mightier than the pen.'⁷¹ Editors were thus torn between considerations of public interest and staff safety in deciding whether or not to reuse and republish the cartoons in the days following the attacks. Interestingly, this question drew different responses from print and online media outlets, which were more likely to republish the cartoons.⁷² As solutions for the 'assassin's veto', Garton Ash proposes collective action and solidarity amongst news media, through coordinated republication, as well as the promotion of a 'one-click away' principle for

68 *Dink v Turkey* Applications Nos 2668/07 et al., Merits and Just Satisfaction, 14 September 2000 at para 137, and also paras 64–75, 106–108, 138 (French only). See McGonagle, 'Positive Obligations Concerning Freedom of Expression: Mere Potential or Real Power' in Andreotti, *supra* n 50 at 9.

69 Garton Ash, 'Defying the Assassin's Veto', *The New York Review of Books*, 19 February 2015; Garton Ash, *Free Speech: Ten Principles for a Connected World* (2016) at 129–32, 142.

70 An attack on *Hamburger Morgenpost* the day after it republished some of Charlie Hebdo's material showed that the fear of provoking a violent response was well-founded; see Reuters, 'Arson Attack on Hamburg Newspaper that Printed Charlie Hebdo Cartoons', 11 January 2015. Some commentators identified the decision not to republish the cartoons as being driven out of 'respect'. *The Guardian's* then editor, Alan Rusbridger also said that *The Guardian* 'would never in the normal run of events publish' or reprint Charlie Hebdo's very offensive cartoons. For Garton Ash the term 'respect' is 'so uncomfortably intertwined with fear of the assassin's veto', rather than being connected with ethical standards and concerns about 'tolerance'; see Garton Ash, *Free Speech*, *ibid.* at 144–5. Compare Slaughter, 'Charlie Hebdo's Rights and Wrongs', *Project Syndicate*, 27 January 2015.

71 As quoted in Garton Ash, *Free Speech*, *supra* n 69 at 145.

72 Charlie Hebdo's offensive cartoons were reprinted with a warning by some newspapers (for example, in Poland and Italy), posted as images on the sites of other newspapers without being printed, or on online publications such as *Slate*, *The Huffington Post* and *BuzzFeed*; Garton Ash, 'Defying the Assassin's Veto', *supra* n 69. *The New York Times* and the mainstream press UK decided not to republish the cartoons on 8 January and the days afterwards, though some newspapers—notably *The Guardian* and *The Independent*—did later reprint the cover of Charlie Hebdo's *Survivor's* issue on the grounds of its conciliatory tone. See Wagner, 'We Are Not All "Charlie Hedbo", But We Are All Afraid', *HuffPost*, 8 January 2015; Elliott, 'The Readers' Editor on... the Guardian's Values and Charlie Hebdo's Cartoons of Muhammad', *The Guardian*, 19 January 2015.

Internet companies.⁷³ These solutions can never be an absolute answer to the chilling effect and crucially rely on intermediaries, particularly social media platforms, who wield immense power over freedom of expression, but whose responsibilities to protect and promote that right are only beginning to be articulated by the UN human rights system.⁷⁴ It seems only logical, however, that the transnational chilling effect of the ‘assassin’s veto’, as in the *Charlie Hebdo* attacks, requires that the positive duty to create a favourable environment for freedom of expression stretches to states beyond the one in which such an attack took place. This transnational aspect of the protection of freedom of expression has yet to be addressed by regional courts and other authorities, however.

B. The Right to Offend Religious Believers

The offensive content of *Charlie Hebdo*’s cartoons, the magazine’s ‘message’, rather than deadly nature of the attack itself, fast became the major focus of commentaries in the period after the attacks. For many across the Muslim world and even in the West, the blasphemous images produced by *Charlie Hebdo*’s cartoonists meant that it was they who were really at fault, and so even ‘deserved’ to be killed. But the backlash of responses against the ‘*Je Suis Charlie*’ meme also encompassed the critical perspectives of politicians and writers in the West, who condemned the attacks, but simultaneously sought to distance themselves from what they saw as *Charlie Hebdo*’s ‘racist and Islamophobic provocations’.⁷⁵ The magazine had a long established reputation for stereotyping Muslims and was blamed for fuelling tensions between different communities in France before the attacks; a controversial reputation it has maintained, notably in relation to Europe’s migrant crisis.⁷⁶

In contrast to the relative coherence between the international and European approaches towards the issue of the protection and safety of journalists, there is marked divergence and inconsistency between the international and regional systems on issues of blasphemy and religious offence.⁷⁷ On the one hand, European jurisprudence has shown a strong protection of freedom of expression departing from the ECtHR’s pioneering principle, which was frequently recalled after the attacks on *Charlie Hebdo*, that freedom of expression encompasses the right to disseminate information or ideas that ‘offend, shock or disturb the State or any

73 Garton Ash, *Free Speech*, supra n 69 at 147–8.

74 Report of the Special Rapporteur to freedom of opinion and freedom of expression, supra n 35.

75 Teju Cole quoted in Schuessler, ‘Six Pen Members Decline Gala after Charlie Hebdo Award’, *The New York Times*, 26 April 2015. See also Charles Bremer, ‘Je ne suis pas Charlie: the Hebdo Backlash’, *The Times*, 6 January 2016; ‘Several Reasons Why People are Saying “Je Ne Suis Pas Charlie”’, *The Week*, 14 January 2015.

76 Meade, ‘Hebdo Cartoon Depicting Drowned Child Alan Kurdi Sparks Racism Debate’, *The Guardian*, 14 January 2016.

77 See Letsas, ‘Is There a Right Not to Be Offended in One’s Religious Beliefs’ in Zucca and Ungureanu (ed), *Law, State and Religion in the New Europe* (2012) 239; Trispiotis, ‘The Duty to Respect Religious Feelings: Insights from European Human Rights Law’ (2012–13) 19 *Columbia Journal of European Law* 499; Langer, *Religious Offence and Human Rights* (2014) at 142; Temperman, *Religious Hatred and International Law* (2015); Polymenopolou, ‘Does One Swallow Make a Spring? Artistic and Literary Freedom at the European Court of Human Rights’ (2016) 16 *Human Rights Law Review* 511.

sector of the population'.⁷⁸ The Court has supported artistic freedom as 'essential for a democratic society' and found that convictions for defamation of a religious community and of a 'national, race and belief' violated freedom of expression.⁷⁹ The former European Commission on Human Rights held that Article 9 of the ECHR on freedom of religion or belief could not 'extend to guarantee a right to bring any specific form of proceedings against those who, by authorship or publication, offend the sensitivities of a group of individuals'.⁸⁰ It later ruled that 'members of a religious community must tolerate and accept the denial by others of their religious beliefs and even the propagation of doctrines hostile to their faith'.⁸¹ In addition, the Parliamentary Assembly of the Council of Europe has endorsed the review of blasphemy laws, while the Venice Commission has expressly called for their abolition.⁸²

On the other hand, the Court has declined to interfere with prohibitions on speech deemed to be blasphemous on the basis of states' margin of appreciation and a lack of a European consensus.⁸³ Although the Court has asserted a more positive approach to freedom of expression in its more recent jurisprudence, its earlier line of cases has not been overruled and as such remains deeply problematic from a freedom of expression perspective, its existence serving to legitimise bans on blasphemy in Europe and their existence beyond.⁸⁴ It further reinforces the justifications for prohibitions on blasphemy (such as in Austria, Finland, Greece, Ireland and Italy) and 'religious insult' or 'vilification' of religious feelings (such as in Cyprus, the Czech Republic, Spain, Finland, Germany, Greece, Italy, Lithuania, the Netherlands, Poland, Portugal and Slovakia) across the EU, as well as within other Council of Europe Member States (such as Turkey).⁸⁵ Moreover, the ECtHR's approach to

78 *Handyside v United Kingdom* Application No 5493/72, Merits and Just Satisfaction, 7 December 1976 at para 49. The words were recalled by, among others, Human Rights Watch, 'France: An Attack on Free Expression', 8 January 2015.

79 *Müller v Switzerland* Application No 10737/84, Merits and Just Satisfaction, 24 May 1988, at para 83; *Giniewski v France* Application No 64016/00, Merits and Just Satisfaction, 31 April 2006; *Klein v Slovakia* Application No 72208/01, Merits and Just Satisfaction, 31 October 2006.

80 *Choudhury v United Kingdom* Application No 17439/90, Admissibility, 5 March 1991.

81 *Dubowska and Skup v Poland* Applications Nos 33490/96 and 34055/96, Admissibility, 18 April 1997.

82 Council of Europe, Parliamentary Assembly, Recommendation 1805 (2007), Blasphemy, religious insults and hate speech against persons on grounds of their religion, 29 June 2007, at para 15; European Commission for Democracy through Law, 'Report on the Relationship Between Freedom of Expression and Freedom of Religion: The Issue of Regulation of Blasphemy, Religious Insult and Incitement to Religious Hatred', adopted by the Venice Commission at its 76th Plenary Session, CDL-AD(2008)026, 23 October 2008, at para 89.

83 See *Otto-Preminger v Austria* Application No 13470/87, Merits and Just Satisfaction, 20 September 1994; *Wingrove v United Kingdom* Application No 13470/87, Merits and Just Satisfaction, 25 November 1996. See also *Murphy v Ireland* Application No 44179/98, Merits and Just Satisfaction, 10 July 2003; *IA v Turkey* Application No 42571/98, Merits and Just Satisfaction, 13 September 2005. Contrast *Giniewski v France* Application No 64016/00, Merits and Just Satisfaction, 31 January 2006 and *Klein v Slovakia* Application No 72208/01, Merits and Just Satisfaction, 31 October 2006. See also the discussion of the contrasting lines of case-law in Harris et al., *Harris, O'Boyle & Warbrick: Law of the European Convention on Human Rights* 4th edn (2018)(forthcoming) at Ch 13, Section 6.VII, at 648–9.

84 See *Giniewski v France* *ibid.* and *Klein v Slovakia*, *ibid.* See also Graham-Harrison and Hammadi, 'Inside Bangladesh's Killing Fields: Bloggers and Outsiders Targeted by Fanatics', *The Observer*, 12 June 2016.

85 Griffen, Trionfi and Ellis, *Out of Balance – Defamation Law in the European Union: A Comparative Overview for Journalists, Civil Society and Policymakers* (International Press Institute, January 2015) at 22. For data on blasphemy laws, see International Humanist and Ethical Union, *The Freedom of Thought*

'hate speech' lacks conceptual clarity largely due to the 'guillotine' effects of Article 17 of the ECHR, the 'abuse clause', which has been applied to avoid a substantive review of cases concerning anti-Islamic and anti-Semitic 'hate speech' under Article 10 of the ECHR in a number of cases.⁸⁶ Laws prohibiting blasphemy or religious insult should be found to be in violation of the ECHR on the basis of a stronger protection of freedom of expression, the idea of the ECHR as a 'living instrument' and a recognition of the marked shift in international human rights law approaches towards such laws over the recent years, which are discussed further below.⁸⁷ The ECtHR should also refrain from applying Article 17 of the ECHR precisely because its use undermines a principled basis upon which cases are decided and disrupts the building of a clear jurisprudence, particularly in the field of freedom of expression.

(i) Artistic expression

A decade ago, the Human Rights Committee declined to examine a complaint brought by two Muslims following the Danish cartoons crisis, rather like the ECtHR, on procedural grounds. Had the Committee chosen to engage with the merits of the case, there might have been directly relevant jurisprudence involving artwork satirising the Prophet Mohammed and Islam.⁸⁸ Nonetheless, a broad range of types of expression, including artistic expression, are clearly protected by Article 19 of the ICCPR.⁸⁹ In 2013, the Special Rapporteur in the field of cultural rights, Farida Shaheed, reported on restrictions imposed on artists 'quoting sacred texts, using religious symbols or figures, questioning religion or the sacred' in their works.⁹⁰ Noting that 'artistic creativity demands an environment free from fear and insecurity', the Special Rapporteur recommended that 'States should abide by their obligation to protect

Report 2016 (2016) and the site of the End Blasphemy Laws campaign, available at: end-blasphemy-laws.org/ [last accessed 10 March 2018]. Significantly, since the attacks on Charlie Hebdo, Norway, Malta and Denmark abolished their laws prohibiting blasphemy. See RT.com, 'Norway Repeals Blasphemy Law in Symbolic Snub to Charlie Hebdo Attack', 10 May 2015; 'Repealing Blasphemy Law a Victory for Freedom of Speech, Says Humanist Association', *Times of Malta*, 14 July 2016; Agence France-Presse, 'Denmark Scraps 334-year-old Blasphemy Law', 2 June 2017.

- 86 See, for instance, *Norwood v United Kingdom* Application No 23131/03, Admissibility, 16 November 2004; *M'Bala M'Bala v France* Application No 25239/13, Admissibility, 20 November 2015. For discussion, see Tulkens, 'When to Say Is To Do: Freedom of Expression and Hate Speech in the Case-law of the European Court of Human Rights' in Casadevall et al. (eds), *Freedom of Expression: Essays in Honour of Nicholas Bratza* (2012) 279 at 284. See also Cannie and Voorhoof, 'The Abuse Clause and Freedom of Expression in the European Human Rights Convention: An Added Value for Democracy and Human Rights Protection?' (2011) 29 *Netherlands Quarterly of Human Rights* 54; Keane, 'Attacking Hate Speech under Article 17 of the European Convention on Human Rights' (2007) 25 *Netherlands Quarterly of Human Rights* 641. 'Hate speech' is also defined broadly in: European Commission Against Racism and Intolerance, General Policy Recommendation No 15 on Combating Hate Speech, 8 December 2015, CRI (2016)15 at Preamble, para 6.
- 87 Letsas, 'The ECHR as a Living Instrument: Its Meaning and Legitimacy' in Ulfstein, Føllesdal and Peters (eds), *Constituting Europe: The European Court of Human Rights in a National, European and Global Context* (2013) 106.
- 88 *Kasem Said Ahmad and Asmaa Abdol-Hamid v Denmark* (1487/2008), Admissibility, 18 April 2008, CCPR/C/92/D/1487/2006 at paras 3.1–3.6; *Ben el Mahi v Denmark* Application No 5853/06, Admissibility, 11 December 2006.
- 89 General Comment No 34, supra n 45 at para 11.
- 90 See Report of the Special Rapporteur in the field of cultural rights, Farida Shaheed, on the right to freedom of artistic expression and creativity, 14 March 2013, A/HRC/23/34 at para 47.

artists and all persons participating in artistic expressions and creations from violence by third parties'⁹¹ and that decision-makers 'take into consideration . . . the right of artists to dissent, to use political, religious and economic symbols as a counter-discourse to dominant powers, and to express their own belief and world vision'.⁹²

Following the *Charlie Hebdo* attacks, however, there has been an upsurge in attention paid to artistic expression by the UN human rights bodies. Nudged by civil society and supportive states, the Human Rights Council took steps to more expressly defend artistic expression throughout 2015. An NGO-organised side-event on 'defending artistic expression' at the 28th session in March 2015⁹³ was followed by the proposal of a resolution on artistic expression by the United States, which was later withdrawn after the Organisation of Islamic Cooperation proposed hostile amendments based on the language of resolutions on 'combating defamation of religions' at the 29th session in June 2015.⁹⁴ Finally, at the 30th session in September 2015, 57 states delivered a joint statement affirming artistic freedom, condemning 'threats, censorship and violations' of artists' human rights and urging that 'reactions to controversial artwork should be expressed not through violence but through dialogue and engagement'.⁹⁵ Thus, the Human Rights Council's action to shore up artistic freedom in the wake of the *Charlie Hebdo* attacks seemed set to follow a typical trajectory of norm generation within the Council, towards the adoption of a dedicated resolution on the subject. No such resolution, let alone one that is robust in its terms, has (yet) been forthcoming due to ongoing controversies amongst states surrounding direct references to religion as a justification for restrictions on artistic expression and the influence of key OIC states, particularly Saudi Arabia, within the Council.⁹⁶ Support for artistic expression is still to be found in the Council's third resolution on 'civil society space' adopted at the 32nd session in July 2016, which draws a connection between the 'important role of artistic

91 Ibid. at paras 87, 89(e).

92 Ibid. at para 89(d).

93 The event, which was organized by ARTICLE 19 and sponsored by the United States of America, Uruguay and the Community of Democracies, featured artists from around the world—Zunar from Malaysia, Nadia Plesner from Denmark, Issa Nyaphaga from Cameroon and Natalia Kaliada from Belarus—as well as the UN Special Rapporteur on freedom of opinion and expression, David Kaye: see Smith, 'ARTICLE 19 at the UN: Defend Artistic Expression', *ARTICLE 19 blog*, 10 March 2015.

94 See the draft resolution proposed by Albania, Australia,* Benin,* Bulgaria,* Cyprus,* Estonia, Georgia,* Germany, Greece,* Guatemala,* Honduras,* Hungary,* Israel,* Latvia, Lithuania,* Luxembourg,* New Zealand,* Peru,* the Republic of Moldova,* Spain,* the former Yugoslav Republic of Macedonia, the United Kingdom of Great Britain and Northern Ireland, the United States of America, Uruguay (* denotes states who were not members of the Human Rights Council at the time) on the right to freedom of expression, including in the form of art, 29 June 2015, A/HRC/29/L.20; Amendment to draft resolution A/HRC/29/L.20 by Pakistan (on behalf of the OIC, except Albania and Benin), 30 June 2015, A/HRC/29/L.32; Amendment to draft resolution A/HRC/29/L.20 by Pakistan (on behalf of the OIC, except Albania and Benin), 30 June 2015, A/HRC/29/L.33.

95 Permanent Mission of the United States of America to the United Nations and Other International Organizations in Geneva, Joint Statement of 57 states, 'HRC Statement Reaffirms the Right to Freedom of Expression Including Creative and Artistic Expression', 18 September 2008, available at: geneva.usmission.gov/ [last accessed 10 March 2018]. See also ARTICLE 19, 'UN HRC: Artistic Expression Must Be Protected', 18 September 2015.

96 The hostile amendments to the draft resolution proposed by the United States in June 2015, which were based on the language of the resolutions on 'combating defamation of religions', were pushed by Saudi Arabia during the informal negotiations.

expression and creativity in the development of society and . . . a safe and enabling environment for civil society'.⁹⁷

As independent experts, free from the constraints of states' interests, UN Special Procedures mandate-holders have been able to address issues of artistic expression more directly in the aftermath the *Charlie Hebdo* attacks. Writing informally on 11 January 2015, the Special Rapporteur on freedom of opinion and expression, David Kaye, urged the repeal of blasphemy laws and the reinforcement of the UN human rights machinery.⁹⁸ He also highlighted the persistence of '[g]overnment repression of artists of all sorts' in his 2016 report to the General Assembly on 'critical contemporary challenges to freedom of expression'.⁹⁹ UN experts have also issued official statements condemning the censorship and the silencing of artists based on religious ideas.¹⁰⁰ For instance, in December 2015 David Kaye and other mandate-holders appealed to the authorities of Saudi Arabia to halt the execution of the poet Ashraf Fayadh for his allegedly blasphemous writings.¹⁰¹

(ii) *Blasphemous speech*

Calls for *Charlie Hebdo*'s cartoons to be banned on the grounds that they are blasphemous, insulting or offensive to Islam would be denied under settled international law. Restrictions on freedom of expression which are 'enshrined in traditional, religious and other such customary law' are incompatible with the International Covenant on Civil and Political Rights (ICCPR) according to the Human Rights Committee in General Comment No 34.¹⁰² Moreover, 'prohibitions of displays of lack of respect for a religion or other belief system, including blasphemy laws, are incompatible with the Covenant', unless they qualify as prohibitions on incitement under Article 20, paragraph 2 of the ICCPR.¹⁰³ International human rights law thus

97 HRC Res 32/31, 1 July 2016, A/HRC/RES/27/31, at para 6. See also HRC Res, 27/31, 26 September 2014 A/HRC/RES/27/31, at para 5; HRC Res 24/21, 27 September 2013 on 'civil society space: creating and maintaining, in law and in practice, a safe and enabling environment', A/HRC/RES/24/21, does not refer expressly to artistic expression.

98 Kaye, 'Beyond the Paris Attacks and Rally: What Should Happen Next', *Points of Order* blog, 11 January 2015.

99 Report of the Special Rapporteur on freedom of opinion and expression, 6 September 2016, A/71/373 at paras 4, 49 and 50.

100 Statement by Special Rapporteurs on cultural rights, Karima Bennouna, and on freedom of expression, David Kaye, 'UN Experts Call for the Release of a Qatari Poet Serving a 15-year Jail Sentence for Writing and Reciting a Poem', 20 October 2015; Statement by Special Rapporteur on freedom of expression, David Kaye, 'UN Rights Expert Raises Alarm over Saudi Arabia's Growing Clamp Down on Freedom of Expression', 16 December 2015; Statement by Special Rapporteurs on cultural rights, Karima Bennouna, on freedom of expression, David Kaye, and on the independence of judges and lawyers, Mónica Pinto, 'Qatar: UN Experts Welcome Release of Poet al-Ajami, but Call for Deep Review of Law and Judicial System', 18 March 2016; Statement by Special Rapporteurs on cultural rights, Karima Bennouna, and on freedom of expression, David Kaye, "Artistic Expression Is Not a Crime" – UN Rights Experts Urge the Iranian Government to Free Jailed Artists', 24 June 2016.

101 Statement by Special Rapporteurs extrajudicial, summary or arbitrary executions, Christof Heyns, on freedom of expression, David Kaye, and freedom of religion or belief, Heiner Bielefeldt, 'UN Rights Experts Urge Saudi Arabia to Halt the Execution of Palestinian Poet Ashraf Fayadh', 3 December 2015.

102 General Comment No 34, supra n 45 at paras 11 and 24. See also *Shin v Republic of Korea* (926/2000), Views, CCPR/C/80/D/926/2000, 16 March 2004.

103 General Comment No 34, *ibid.* at para 48. For commentary, see O'Flaherty, 'Freedom of Expression: Article 19 of the International Covenant on Civil and Political Rights and the Human Rights

recognises the rights of individuals, whether believers, agnostics or atheists, but not abstractions such as religious ideas, symbols and tenets.¹⁰⁴

The Human Rights Committee's position has been consolidated in various ways over recent years. First, Human Rights Council Resolution 16/18 of March 2011 and successive resolutions of the Human Rights Council and General Assembly are focused on 'combating intolerance, negative stereotyping and stigmatization of, and discrimination, incitement to violence and violence against, persons based on religion or belief',¹⁰⁵ rather than 'defamation of religions', a problematic concept which had been the subject of more than a decade's worth of earlier resolutions.¹⁰⁶ Secondly, the Rabat Plan of Action, recommends that 'states that have blasphemy laws should repeal them' on the grounds that 'such laws have a stifling impact on the enjoyment of freedom of religion or belief, and healthy dialogue and debate about religion'.¹⁰⁷ Thirdly, several Special Procedures mandate-holders have re-affirmed their opposition to blasphemy prohibitions after the *Charlie Hebdo* attacks and, in doing so, have highlighted long-recognised policy justifications for their abolition.¹⁰⁸ The

Committee's General Comment No 34' (2012) 12 *Human Rights Law Review* 627; Parmar, 'Uprooting "Defamation of Religions" and the Emergence of a New Approach to Freedom of Expression at the United Nations' in McGonagle and Donders (eds), *The United Nations and Freedom of Expression and Information: Critical Perspectives* (2015) 373 at 389.

104 Report on freedom of religion or belief and on contemporary forms of racism, racial discrimination, xenophobia and related intolerance, 20 September 2006, A/HRC/2/3, at para 38. See also Report of the Special Rapporteur on freedom of opinion and expression, Ambeyi Ligabo, 28 February 2008 A/HRC/7/14, at para 85.

105 HRC Res 16/18, supra n 28. This resolution has been consolidated through similar subsequent resolutions adopted by the Human Rights Council, specifically, HRC Res 19/25, 23 March 2012, A/HRC/RES/19/25; HRC Res 22/31, 22 March 2013, A/HRC/RES/22/31; HRC Res 25/34, 28 March 2014, A/HRC/RES/25/34; HRC Res 28/29, 27 March 2015, A/HRC/RES/28/29; HRC Res 31/26, 24 March 2016, A/HRC/RES/31/26; HRC Res 34/32, 24 March 2017, A/HRC/RES/34/32—as well as the General Assembly, specifically, GA Res 66/167, 19 December 2011, A/RES/66/167; GA Res 67/178, 20 December 2012, A/RES/67/178; GA Res 68/169, 18 December 2013, A/RES/68/169; GA Res 69/174, 18 December 2014, A/RES/69/174; GA Res 70/157, 17 December 2015, A/RES/70/157; GA Res 71/195, 19 December 2016, A/RES/71/195, A/RES/71/195; GA Res 72/176, 19 December 2017, A/RES/72/176. For commentary on the implementation of HRC Res 16/18, see Limon, Ghanea and Power, *Combating Global Religious Intolerance: The Implementation of Human Rights Council Resolution 16/18* (Universal Rights Group Report, 2014); Smith, 'Implementing Resolution 16/18: The Role of Rabat and the Importance of Civil Society Space', *Universal Rights Group blog*, 18 February 2016; ARTICLE 19, '6th Session of Istanbul Process Focuses on Practical Measures to Implement UN HRC Resolution 16/18', 12 September 2016.

106 See Parmar, supra n 103 at 389.

107 Office of the High Commissioner for Human Rights, 'Rabat Plan of Action on the prohibition of advocacy of national, racial or religious hatred that constitutes incitement to discrimination, hostility or violence', Annual Report of the United Nations High Commissioner for Human Rights (Appendix), 11 January 2013, A/HRC/22/17/Add.4, para 25. For commentary, see Parmar, 'The Rabat Plan of Action: A Critical Turning Point in International Law on "Hate Speech"' in Molnar (ed.), *Free Speech and Censorship Around the Globe* (2015) 211; Parmar, 'The Rabat Plan of Action: A Global Blueprint for Combating "Hate Speech"' (2014) 1 *European Human Rights Law Review* 21.

108 Joint Statement by Mr Githu Muigai, the Special Rapporteur on contemporary forms of racism, racial discrimination, xenophobia and related intolerance, Ms Asma Jahangir, the Special Rapporteur on freedom of religion or belief and Mr Frank la Rue, the Special Rapporteur on the promotion and protection of freedom of opinion and expression, OHCHR side event during the Durban Review Conference, Geneva, 22 April 2009; International Mechanisms for Promoting Freedom of Expression, 'Joint

Special Rapporteur on freedom of opinion and expression, David Kaye, has emphasised how blasphemy laws suggest ‘a government’s support for targeting a person for her opinion or expression’, ‘are regularly used as instruments to limit religious expression or dissent’ and ‘send the wrong message and breed resentment more than they protect the sensibilities of believers’.¹⁰⁹ In a similar vein, the Special Rapporteur on freedom of religion or belief, Heiner Bielefeldt, denied that blasphemy laws may be justified under Article 18 of the ICCPR, noting that ‘blasphemy laws . . . may fuel intolerance, stigmatization, discrimination and incitement to violence and discourage intergroup communication’.¹¹⁰

(iii) ‘Hate speech’

The attacks on *Charlie Hebdo* were widely seen as having been motivated by the ‘hate speech’ of the satirists. *Charlie Hebdo*’s cartoonists were regularly accused and often sued for ‘hate speech’ for the material they produced.¹¹¹ At the same time, the attacks precipitated a ‘resurgence of racist and xenophobic discourse in both the public and political spheres’ and the ‘upsurge in violent incidents of a racist, anti-Semitic or anti-Muslim nature’, as later noted by the Human Rights Committee itself.¹¹² Though there is no definition for ‘hate speech’ as such, under international law any restrictions on freedom of expression in order to protect others’ rights to equal treatment and non-discrimination would clearly need to comply with the requirements of Article 19(3) of the ICCPR.¹¹³ There is limited jurisprudence on Articles 19 and 20 of the ICCPR in which the Human Rights Committee has on occasion supported measures restricting freedom of expression to support the rights of members of religious minorities to be free from discrimination.¹¹⁴ Yet recent years have seen a great focus from different UN human rights bodies other than the Human Rights Committee both on the very relevant subject of ‘combating religious intolerance’ and on the meaning of ‘incitement’, particularly Article 20 of the ICCPR, in international law.¹¹⁵ Indeed, Human Rights Council Resolution 16/18 and the Rabat Plan of Action show that the denial of prohibitions on blasphemy as acceptable does not

Declaration on Defamation of Religions, and Anti-Terrorism and Anti-Extremism Legislation’, 9 December 2008.

109 Kaye, *supra* n 98.

110 See Reports of Special Rapporteur on freedom of religion or belief, Heiner Bielefeldt, 23 December 2015, A/HRC/31/18 at paras 59–61, 84, and 29 December 2014, A/HRC/28/66 at para 94. See also Human Rights Committee, General Comment No 22 (Article 18), 22 September 1993, CCPR/C/21/Rev.1/Add.4 at paras 1 and 4; UN Working Group on Arbitrary Detention, Opinion No 35/2008 (Egypt), Communication addressed to the Government on 6 December 2008, at para 38.

111 Noorlander, ‘In Fear of Cartoons’ (2015) 2 *European Human Rights Law Review* 115 at 116.

112 Human Rights Committee, Concluding observations on the Fifth Periodic Report on France, 17 August 2015, CCPR/C/FRA/CO/5, at para 23.

113 General Comment No 34, *supra* n 45 at para 50.

114 *Robert Faurisson v France* (550/1993), Views, CCPR/C/58/D/550/1993; *Ross v Canada* (736/1997), Views, CCPR/C/70/D/736/1997.

115 Rabat Plan of Action, *supra* n 107, which draws on *The Camden Principles on Freedom of Expression and Equality* (2009), available at: article19.org [last accessed 10 March 2018]; HRC Res 16/18, *supra* n 28 at paras 5 and 6(c).

mean that the international human rights system cannot visualise any responses to the type of religious prejudice generated by *Charlie Hebdo* cartoons, including any responsibilities on the part of such publications.¹¹⁶ Together these two texts provide a framework for how states, and also the media, should combat intolerance and incitement on religious grounds in societies.

Resolution 16/18 indicates that states should among other things: (1) '[encourage] the creation of collaborate networks to build mutual understanding, promote dialogue and inspire constructive action'; (2) '[create] an appropriate mechanism within governments to . . . identify and address potential areas of tension between members of different religious communities, and assist conflict prevention and mediation'; (3) '[speak] out against, including advocacy of religious hatred intolerance and incitement to discrimination, hostility or violence'; (4) '[adopt] measures to criminalise incitement to imminent violence based on religion or belief'; (5) '[understand] the need to combat denigration and negative religious stereotyping of persons, as well as incitement to religious hatred, by . . . education and awareness-raising'; (6) '[recognise] that open, constructive and respectful debate can play a positive role in combating religious hatred'; and (7) 'encourage the representation and meaningful participation of individuals irrespective of their religion in all sectors of society'.¹¹⁷

The Rabat Plan of Action provides an especially salient elaboration of the obligations and responsibilities of states and non-state actors, including the media, regarding the prohibition on incitement to hatred in international human rights law.¹¹⁸ It has gathered support amongst the treaty bodies and Special Procedures for its 'guidance on how to build resilience in society against incitement to religious hatred and concomitant acts of violence'.¹¹⁹ The Plan, which is premised on the position that any prohibition on incitement should also meet the criteria for permissible restrictions on freedom of expression under Article 19, paragraph 3,¹²⁰ embodies a multi-pronged approach which encompasses criminal sanctions for incitement if six conditions—concerning the expression's context, speaker, intent, content and form,

116 See also Smith, 'Charlie Hebdo Attack and Global Reaction Highlights Critical Importance of Renewed Commitment to the Implementation of Resolution 16/18 and the Rabat Plan of Action', *Universal Rights Group blog*, 12 January 2015.

117 HRC Res 16/18, *supra* n 28 at paras 5 and 6(c).

118 Rabat Plan of Action, *supra* n 107 at para 14.

119 See Report of the Special Rapporteur on freedom of religion or belief, Heiner Bielefeldt, 29 December 2014, A/HRC/28/66 at paras 49, 50, 81 and 101. See also Report of the Special Rapporteur on freedom of religion, Heiner Bielefeldt, A/HRC/22/51, 24 December 2012, at para 63; Report of the Special Rapporteur on freedom of opinion and expression, Frank la Rue, A/HRC/23/, 17 April 2013, at para 8; Report of the Special Rapporteur on freedom of opinion and expression, Frank la Rue, A/67/357, 7 September 2012; Report of the Special Rapporteur in the field of cultural rights, Farida Shaheed, on the right to freedom of artistic expression and creativity, 14 March 2013, A/HRC/23/34 at paras 31 and 48; Report of the Special Rapporteur on contemporary forms of racism, racial discrimination, xenophobia and related intolerance, Mutuma Ruteere, A/HRC/23/56, 2 April 2013, para 9; Report of Special Rapporteur on freedom of religion or belief, Heiner Bielefeldt, 23 December 2015, A/HRC/31/18 at paras 4, 10, 57–59, 74, 86, 91. See also Committee on the Elimination of Racial Discrimination, General Recommendation No 35 on 'Combating racist hate speech', 26 September 2013, CERD/C/GC/35, at paras 15, 16, 29 and 35.

120 General Comment No 34, *supra* n 45 at paras 50–52.

its extent and the likelihood, including imminence, of resulting harm—are fulfilled.¹²¹ While some of the *Charlie Hebdo* cartoons might meet this extremely high threshold, it is likely that the vast majority of them would not pass muster. But the overwhelming value of the Rabat Plan stems from its mainly non-coercive approach to incitement to hatred, one that largely rests on speech-related solutions. The plan recommends that states put in place, in response to forms of incitement which fall below the threshold for criminal sanctions, a system civil and administrative sanctions and measures to promote civility and respect in societies, and also ensure that there is comprehensive anti-discrimination legislation and measures to promote intercultural understanding, including through education.¹²² It also emphasises that the media, including such satirical publications as *Charlie Hebdo*, have moral and social responsibilities to actively combat discrimination and promote intercultural understanding and to be, at minimum, ‘alert to the danger of furthering discrimination or negative stereotypes of individuals and groups’ and avoid ‘unnecessary references to race, religion, gender and other group characteristics that may promote intolerance’.¹²³ These aspects of the Rabat Plan provide the strongest basis for criticism of *Charlie Hebdo*’s satirists from an international human rights perspective.

4. FREEDOM OF EXPRESSION AS PART OF THE PROBLEM

Notwithstanding these reflections on the public outpourings in support of and against freedom of expression and the relevance of jurisprudence and authoritative interpretations of the right to the *Charlie Hebdo* attacks, it seems that their most enduring legacy in policy terms will be as a major stimulus for evolving approaches on preventing violent extremism (PVE) and countering violent extremism (CVE)—including at the global level.¹²⁴ The growing popularity of such approaches since January 2015 suggests that the attacks undoubtedly ‘strengthened the political and legal resolve to address (violent) extremism and radicalisation’ through the establishment or, where they did not exist, the expansion of such policies.¹²⁵

Broadly speaking, PVE and CVE policies are intended to address the phenomena, especially radicalisation, which are considered to be at the root causes of terrorist activity. A diversity of domestic policies framed expressly as ones concerning PVE and/or CVE has rapidly expanded over the recent years, however, to include the United States’ Strategic Implementation Plan for Empowering Local Partners to

121 Rabat Plan of Action, supra n 107 at para 29. For a more detailed legal and policy framework on restrictions on incitement, see also ARTICLE 19, *Policy Brief: Prohibiting Incitement to Discrimination, Hostility or Violence* (December 2012); ARTICLE 19, *‘Hate Speech’ Explained: A Toolkit* (2015).

122 Rabat Plan of Action, supra n 107 at paras 20, 26, 34 and 43.

123 Ibid. at paras 58 and 59. The Special Rapporteur on freedom of religion or belief endorsed ‘interreligious communication and public debates’ as well as the establishment by the media of ‘voluntary mechanisms of religious sensitization’ towards ensuring religious that sensitivity becomes ‘an important feature of a culture of communication, especially in multi-religious societies’: see Report of Special Rapporteur on freedom of religion or belief, Heiner Bielefeldt, 23 December 2015, A/HRC/31/18 at para 61.

124 See generally Chowdhury Fink and Hearne, *Beyond Terrorism: Deradicalization and Disengagement from Violent Extremism* (International Peace Institute, October 2008); Nasser-Eddine et al., *Countering Violent Extremism (CVE) Literature Review* (Counter Terrorism and Security Technology Centre, Australia, March 2011).

125 Callamard, supra n 10 at 209.

Prevent Violent Extremism,¹²⁶ the UK's Prevent strategy and the proposal of a new Counter-Extremism and Safeguarding Bill in May 2016,¹²⁷ an action plan launched by the government of Norway¹²⁸ and the establishment of the Counter-Violent Extremism Unit within the Department of the Attorney-General of Australia.¹²⁹ Such initiatives are closely connected to counter-terrorism approaches; unsurprisingly, both France and Belgium have bolstered their counter-terrorism legislation recently, with France repeatedly extending the state of emergency that it first imposed in the aftermath of the November 2015 attacks.¹³⁰ Such initiatives against extremism as such have not been restricted to 'Western' or liberal states: Russia has had a strategy for countering extremism since 2014, while Central Asian states have adopted their own initiatives over recent years.¹³¹ The proliferation of PVE and CVE approaches at the domestic level has inevitably pressed 'the issue's increasing significance on the global agenda', particularly since January 2015.¹³² There has certainly been a marked increase of global gatherings on PVE and CVE specifically following the attacks, most notably the US-hosted White House Summit on Countering Violent Extremism in February 2015, the Leaders' Summit to Counter ISIL and Violent Extremism of September 2015 and the UN Counter-Terrorism Implementation Task Force's Conference on Preventing Violent Extremism in April 2016.¹³³ The Ministers of Foreign Affairs of the OSCE adopted a Declaration on

126 Office of the President of the United States, Strategic Implementation Plan for Empowering Local Partners to Prevent Violent Extremism, December 2011. In January 2016, the US Government established an interactive CVE Taskforce hosted by the Department for Homeland Security and, in May 2016, the Department of State and USAID launched a Joint Strategy on Countering Violent Extremism.

127 HM Government, Prevent Strategy, CM 8092, June 2011; HM Government, Counter-Extremism Strategy, CM 9148, October 2015; HM Government, Revised Prevent Duty Guidance for England and Wales, originally issued on 12 March 2015 and revised on 16 July 2015. See also House of Commons Home Affairs Committee, 'Radicalisation: The Counter-narrative and Identifying The Tipping Point', Eighth Report of the Session 2016–17, HC 135, 25 August 2016; House of Lords/House of Commons Joint Committee on Human Rights, Counter-Extremism, Second Report of Session 2016–17, HL Paper 39, HC 105, 22 July 2016.

128 Norwegian Ministry of Justice and Public Security, Action plan against radicalisation and violent extremism, August 2014.

129 See www.ag.gov.au [last accessed 8 March 2018].

130 Human Rights Watch, 'Grounds for Concern: Belgium's Counterterror Responses to the Paris and Brussels Attacks', 3 November 2016; Breedon, 'French Authorities Given Broader Power to Fight Terrorism', *The New York Times*, 25 May 2016; Human Rights Watch, 'France: Emergency Renewal Risks Normalizing Extraordinary Powers', 15 December 2016.

131 The strategy for countering extremism in the Russian Federation (2014–25) is based on Federal Law No 114-FZ on counteracting extremist activities, 25 July 2002. See Lain, 'Strategies for Countering Terrorism and Extremism in Central Asia' (2016) 47 *Asian Affairs* 386; ARTICLE 19, 'Kyrgyzstan: Law on Countering Extremist Activity', December 2015.

132 Report of the Special Rapporteur on the promotion and protection of human rights and fundamental freedoms while countering terrorism, Ben Emmerson, 22 February 2016, A/HRC/31/65 at para 4.

133 See White House, 'Fact Sheet: The White House Summit on Countering Violent Extremism', 18 February 2015; White House 'Fact Sheet: Leaders' Summit to Counter ISIL and Violent Extremism', 29 September 2015; US Department of State, 'Fact Sheet: Building a Global Movement To Address Violent Extremism', 29 September 2015; Geneva Conference on Preventing Violent Extremism, 7 April 2016. See also the European Conference on Countering Violent Extremism, 5 June 2015; Sixth Ministerial Meeting of the Global Counterterrorism Forum (GCTC) in Washington, DC on 27 September 2015 which approved the establishment of the International Counterterrorism/Countering Violent Extremism Capacity-Building Clearing-House Mechanism (ICCM); The Global Meeting on

Preventing and Countering Violent Extremism and Radicalisation that Lead to Terrorism of December 2015 and the OSCE has subsequently embraced an open-ended social media campaign 'OSCE United in Countering Violent Extremism'.¹³⁴

At the epicentre of recent global approaches, however, has been the policy framework presented by the UN Secretary-General's Plan of Action to Prevent Terrorism of December 2015, which builds upon Security Council resolution 2178 of September 2014 which condemned violent extremism as 'conducive to terrorism'.¹³⁵ Yet the area of PVE and CVE has also quickly emerged as a discrete area within the UN human rights system.¹³⁶ A Joint Statement on CVE, which was delivered on behalf of 77 states at the Human Rights Council's 28th session in March 2015, was followed by the adoption of the Council's first resolution on PVE and CVE at its 30th session in October 2015.¹³⁷ Subsequent sessions have seen a panel discussion (31st session) and the publication of a compilation of the 'best practices and lessons learned' (33rd session) that were both mandated by the resolution.¹³⁸ In addition to the activities of the UN Secretary-General and the Human Rights Council, the Special Rapporteur on counter-terrorism and human rights focussed his 2016 report to the Council on 'human rights in the context of preventing and countering violent extremism' (32nd session), and there have been numerous side-events on PVE and CVE policies hosted by NGOs around the council's sessions.¹³⁹ The Special Rapporteur on freedom of opinion and expression, together with his regional counterparts, issued a 'Joint Declaration on freedom of expression and countering

'Preventing Violent Extremism (PVE) through Promoting Inclusive Development, Tolerance and Respect for Diversity', 14–16 March 2016.

134 See OSCE Ministerial Declaration on Preventing and Countering Violent Extremism and Radicalization that Lead to Terrorism, OSCE Ministerial Council, Belgrade, 4 December 2015, MC.DOC/4/15.

135 Report of the Secretary-General, Plan of Action to Prevent Violent Extremism, 24 December 2015, A/70/674; SC Res 2178, 24 September 2014, S/RES/2178. The Secretary-General's report recommends (at paras 44–5, 48–55) a comprehensive approach through the development of national plans of action and enhanced regional cooperation.

136 See also the reliance of the attention paid to violent extremism by the General Assembly: GA Res 70/291 on The United Nations Global Counter-Terrorism Strategy Review, 19 July 2016, A/RES/70/291, at paras 11–13, 16, 20, 37–39.

137 Human Rights Council Joint Statement on Countering Violent Extremism on behalf of 77 countries, 28th session of Human Rights Council; HRC Res 30/15, 5 October 2015, A/HRC/RES/30/15.

138 High Commissioner for Human Rights, Report on outcome of the panel discussion on the human rights dimensions of preventing and countering violent extremism, 3 August 2016, A/HRC/33/28; High Commissioner for Human Rights, Report on best practices and lessons learned on how protecting and promoting human rights contribute to preventing and countering violent extremism, 21 July 2016, A/HRC/33/29.

139 Report of the Special Rapporteur on the promotion and protection of human rights and fundamental freedoms while countering terrorism, 29 April 2016, A/HRC/31/65. For examples of NGOs' activities at the Human Rights Council, see "Human Rights and Preventing Violent Extremism": The Implications of a Global Battle against an Undefined Phenomenon', side-event hosted by ARTICLE 19, Room XVIII, Palais des Nations, 10 March 2016; Joint written statement submitted by NGOs, 'Initiatives to "Counter and Prevent Violent Extremism" Raise Serious Human Rights Concerns', 4 February 2016, A/HRC/31/NGO/X; Joint letter of 58 NGOs to the High Commissioner of Human Rights, 4 February 2016.

violent extremism' on 4 May 2016.¹⁴⁰ It is also worth noting that the Human Rights Committee for its part has issued concluding observations critical of the relevant policies of states, such as Kazakhstan and Russia, on counter-extremism generally rather than CVE or PVE specifically, and has also found that the seizure of brochures relating to election observation under the Belarussian Law on Fighting Extremism violated Article 19(2) of the ICCPR.¹⁴¹

That the convening power of the UN human rights system is being used to debate and address how states should go beyond narrow military or securitised approaches to countering terrorism, which have proven ineffective and even counter-productive, towards developing a 'preventative, civilian-led framework' may be viewed as a positive development.¹⁴² Yet there are obvious tensions between and within various UN texts—particularly the Secretary-General's report and Human Rights Council Resolution 30/15, on the one hand, and the report of the Special Rapporteur on counter-terrorism, on the other, which embodies a far more cautionary and critical perspective—despite their repeated assertions of the need for compliance with international human rights norms. For instance, the Special Rapporteur has expressed concern that the 'extensive nature' of the description of violent extremism and the absence of any requirement of violence in Human Rights Council Resolution 30/15 could open the door to limitations on critical expression.¹⁴³ The lack of a clear and coherent approach by UN bodies to PVE and CVE policies reflects disagreements between distinct bodies though is explicable given their fundamentally distinct characteristics: whereas the Special Rapporteur is an independent human rights expert, the Human Rights Council is motivated by political interests of its Member States, while the Secretary-General may have sought a document which would attract worldwide support. But the result is a bifurcated rather than a singular message from the UN system to states and other actors (including the intermediaries) about the proper parameters of such policies: whereas the Special Rapporteur's report provides a strong basis for ongoing civil society scrutiny of PVE and CVE approaches, the Secretary-General's report and Human Rights Council Resolution 30/15 offer reinforcement and legitimacy from the UN system to sweeping national approaches on PVE and CVE which may directly challenge freedom of expression.¹⁴⁴

140 Joint Declaration by the Special Rapporteur on Freedom of Opinion and Expression, the OSCE Representative on Freedom of the Media, the Organization of American States (OAS) Special Rapporteur on Freedom of Expression and the African Commission on Human and Peoples' Rights (ACHPR) Special Rapporteur on Freedom of Expression and Access to Information on Freedom of Expression on countering violent extremism, 3 May 2016.

141 Human Rights Committee, Concluding observations on the seventh periodic report of the Russian Federation, 28 April 2015, CCPR/C/RUS/CO/7; Human Rights Committee, Concluding observations on second periodic report of Kazakhstan, 9 August 2016, CCPR/C/KAZ/CO/2; Leonid Sudalenko v Belarus (2114/2011), Views, CCPR/C/112/D/2114/2011.

142 Sarah Sewell, the then Under Secretary of State for Civilian Security, Democracy, and Human Rights in the Obama Administration, quoted in Modirzadeh, 'If It's Broke, Don't Make it Worse: A Critique of the U.N. Secretary-General's Plan of Action to Prevent Violent Extremism', *Lawfare*, 23 January 2016.

143 Report of the Special Rapporteur on counter-terrorism and human rights, *supra* n 139 at paras 27 and 55.

144 Report of the Secretary-General, *supra* n 135 at paras 50(g) and (k). For a critique, see Modirzadeh, *supra* n 142.

The uncertainty of such a split message undermines the authority of the UN system in providing leadership in this realm.

More concretely, although PVE and CVE policies limiting freedom of expression may be possible under Article 19(3) of the ICCPR (so long as they are enshrined in a clear law and are narrowly tailored to serve legitimate objectives, such as the protection of national security, public order or other human rights), emerging approaches in the field—including those texts adopted by UN bodies—stand to undercut freedom of expression by facilitating an understanding of the exercise of the right as problematic.¹⁴⁵ First, this is due to a lack of conceptual clarity and precise definition about what constitutes ‘violent extremism’ and ‘extremism’ more generally, meaning that there is a real risk of overbroad restrictions on the right.¹⁴⁶ The UK’s Counter-Extremism Strategy, known as ‘Prevent’, for instance, includes a far-reaching definition of extremism going beyond terrorism, encompassing ‘vocal or active opposition to fundamental British values, including democracy, the rule of law, individual liberty and mutual respect and tolerance of different faiths and beliefs’ including ‘calls for the death of members of our armed forces, whether in this country or overseas’.¹⁴⁷ It also explicitly includes both violent and even *non-violent* extremism.¹⁴⁸ (Interestingly, freedom of expression does not explicitly appear as such a core value, although there is strong evidence that it is.)¹⁴⁹ Such a broad approach seems supported by the expansive definition of violent extremism contained in Human Rights Council Resolution 30/15, which includes ‘methods and practices of violent extremism in all their forms and manifestations are activities that aim to threaten the enjoyment of human rights and fundamental freedoms, and democracy, and threaten the territorial integrity and security of States, and destabilize legitimately constituted Governments’.¹⁵⁰ This definition lies in contrast to the Human Rights Committee’s position that ‘extremist activity’ should be ‘clearly defined to

145 See General Comment No 34, *supra* n 45 at paras 24 and 33; and Joint Declaration, *supra* n 140 at para 2(c).

146 Report of the Secretary-General, *supra* n 132 at para 4. See also Report of Special Rapporteur on counter-terrorism and human rights, *supra* n 139 at paras 11–17. A broad definition of ‘extremism’ in Tajikistan’s law on fighting against extremism allows prosecutors and courts extensive discretion to restrict the activities of political parties and civil society organisations, and provides the justification for the blocking of numerous sites, social media and search platforms; preliminary observations by the Special Rapporteur on the right to freedom of opinion and expression, David Kaye at the end of his visit to Tajikistan, 9 March 2016. See also the Joint Declaration, *supra* n 140 at preambular para 11.

147 See HM Government, Prevent Strategy, *supra* n 127 at 107; HM Government, Counter-Extremism Strategy, *supra* n 127 at 9, 10, 29 and 32; and House of Lords, House of Lords, Joint Committee on Human Rights, Counter-Extremism: Second Report of Session 2016–17, HL Paper 39, HC 105, at 4.

148 *Ibid.*

149 The Casey Review states: ‘Freedom of speech also features as an important value in 2014 polls run by ICM, in which 66 per cent identified it as a British value, and by ComRes, in which 46 per cent record it as one of ‘the most important’ values. Freedom of speech/expression was identified by 36 per cent of respondents in the 2008 Citizenship Survey as an important value for living in Britain, ranking among the top five listed values chosen by participants’: see Dame Louise Casey, *The Casey Review: A review into opportunity and integration*, Department for Communities and Local Government, December 2016 at para 5.10.

150 HRC Res 30/15, *supra* n 137 at para 1.

ensure that [the offence does] not lead to unnecessary or disproportionate interference with freedom of expression'.¹⁵¹ Moreover, the Special Rapporteur on counter-terrorism and human rights has also noted that the protection of the 'peaceful pursuance of a political, or any other, agenda—even where that agenda is different from the objectives of the government and considered to be "extreme"'.¹⁵²

There is also a related risk that manifestations of violent extremism will be conflated with terrorism, allowing for restrictions of speech which poses no threat to national security or does not incite violence at all.¹⁵³ Rather like the offenses of 'encouragement' or 'glorification' of terrorism or lending 'material support' to terrorism, PVE and CVE approaches appear to target expression that 'prepares the ideological ground for violent action', but still falls short of the threshold of incitement.¹⁵⁴ First, at the international level, the Secretary-General's report regularly ties 'violent extremism' with 'terrorism', as if they pose synonymous threats, whilst at the same time deferring to states for their definition.¹⁵⁵ Building a global framework to address an issue that is not defined though closely associated with another term, which itself lacks a clear meaning, is bound to lead to problems in terms of justification and implementation. As civil society organisations have cautioned, rather like earlier anti-terrorism policies, PVE and CVE programmes have a chilling impact upon the exercise of freedom of expression, raising the possibilities for further restrictions on civil society in increasingly hostile environments, thus failing to recognise the protection of human rights online.¹⁵⁶ Little wonder that the Special Rapporteur on counter-terrorism and human rights has warned that 'the use of the term [violent extremism] as a basis for the adoption of new strategies, measures and legislation may prove even more dangerous for human rights than the term terrorism'.¹⁵⁷

151 General Comment No 34, supra n 45 at para 46.

152 See Report of Special Rapporteur on counter-terrorism and human rights, supra 139 at para 38.

153 Report of the Secretary-General, supra n 135 at para 4. Security Council Resolution 2178, supra n 135 at para 1, condemns 'violent extremism' stating that it 'can be conducive to terrorism, sectarian violence, and the commission of terrorist acts by foreign fighters'.

154 UK Terrorism Act 2006 and US Code sections 2239A and 2339B referenced in the Report of Special Rapporteur on counter-terrorism and human rights, supra 139 at para 39.

155 Notably, the Secretary-General's report, supra n 135 at para 5, states that definitions of 'terrorism' and 'violent extremism' are the 'prerogative of Member States'. See also references to 'violent extremism' and 'terrorism' in Human Rights Council Resolution 30/15, supra n 137 at paras 2 and 5. Human Rights Council resolutions in the area of counter-terrorism have also referenced 'violent extremism': see, for instance, HRC Res 33/21, 30 September 2016, A/HRC/RES/33/21 at paras 1, 2, 3, 7, 12, 14, 15, 17, 18, 22, 23, 25, 26, 27, 31 and 32.

156 See ARTICLE 19, 'UN HRC: Resolution on Violent Extremism Undermines Clarity', 8 October 2015; Joint written statement submitted by ARTICLE 19, Amnesty International and 56 other NGOs to the Human Rights Council, AI index: IOR40/3417/2016; International Commission of Jurists, Report of the Eminent Jurists Panel on Terrorism, Counter-terrorism and Human Rights, July 2009, see especially pp 127–32. A recent Amnesty International report recognised 'the risk that a person could be labelled a security threat or "extremist" has had very real consequences for some people . . . , while the "chilling effect" that such measures creates has left the public space for free expression smaller and more impoverished than it has been in decades': see Amnesty International, *Dangerously Disproportionate: The Ever-Expanding National Security State in Europe*, 17 January 2017, EUR 01/5342/2017 at 37.

157 Report of Special Rapporteur on counter-terrorism and human rights, supra n 139 at para 35. On terrorism in international law, see Saul, *Defining Terrorism in International Law* (2008).

Secondly, PVE and CVE programmes threaten freedom of expression and the other rights—such as equality and non-discrimination, privacy and family life, freedom of thought, conscience and religion, and the right to education—of particular groups in society, such as schoolchildren and students, Muslims, environmentalists and those expressing themselves online.¹⁵⁸ The UK's Prevent strategy, for instance, has been shown to target children expressing political views, stop universities wishing to hold conferences on Islam and Islamophobia and damage trust between students and teachers.¹⁵⁹ Universities have also been encouraged to monitor and record the online communications of students and staff, engendering 'a climate of fear and intimidation . . . [forcing those] who are politically active and Muslim to censor themselves' and 'a culture of mistrust on campus and actually shutting down debate on the very topics we should be exploring'.¹⁶⁰ A growing chorus of civil society voices has unsurprisingly argued that the Prevent strategy lacks any scientific basis and is 'unjust', 'unproductive' and counterproductive, given it risks alienating parts of the population, becoming a 'huge source of grievance' and undermining the very values it seeks to uphold.¹⁶¹ Furthermore, the practice of take-downs of online content, particularly on a mass-scale via the so-called Internet referral units, has been shown to encourage violent extremism, 'inflaming resistance and helping "violent extremist" recruiters discredit platforms'.¹⁶²

Despite such challenges to freedom of expression, PVE and CVE strategies have apparently also drawn upon the positive exercise of the right as a tool to rebut ideologies leading to radicalisation.¹⁶³ UN bodies have themselves consistently recognised the value of the counter-narratives, as well as inter-faith and inter-cultural dialogues to challenge

158 See Open Society Justice Initiative, *Eroding Trust: The UK's PREVENT Counter-Extremism Strategy in Health and Education*, October 2016; Rights Watch, *Preventing Education? Human Rights and UK Counter-terrorism Policy in Schools*, July 2016. See also Townsend and Cobain, 'Home Office Forced to Defend Anti-fracking Groups from Extremism Claims', *The Guardian*, 10 December 2016. On the engagement and limitation of other rights, see also Report of the Special Rapporteur on counter-terrorism and human rights, *supra* n 139 at paras 41–7.

159 Ibid. Bowcott, 'Prevent Strategy "Stifles Debate and Makes Teachers Feel Vulnerable"', *The Guardian*, 9 March 2016; House of Commons Home Affairs Committee, 'Radicalisation: The Counter-narrative and Identifying the Tipping Point', *supra* n 127 at paras 11–14.

160 A King's College London student and the General Secretary of the University and College Union, Sally Hunt, quoted in Weale, 'London University Tells Students Their Emails May Be Monitored', *The Guardian*, 20 January 2017. See also Travis, 'Prevent Strategy To Be Ramped up Despite "Big Brother" Concerns', *The Guardian*, 11 November 2016.

161 Ross, 'Academics Criticize Anti-radicalisation in Open Letter', *The Guardian*, 29 September 2016; Singh, 'Instead of Fighting Terror, Prevent Is Creating a Climate of Fear', *The Guardian*, 19 October 2016; *Eroding Trust*, *supra* n 158. The Special Rapporteur on the rights to freedom of peaceful assembly and of association, Maina Kiai, noted: 'by dividing, stigmatizing and alienating segments of the population, *Prevent* could end up promoting extremism, rather than countering it'; Statement at the conclusion of visit to the United Kingdom, 21 April 2016. See also Report of Special Rapporteur on counter-terrorism and human rights, *supra* n 139 at para 54; Dame Louise Casey, *The Casey Review: A Review into Opportunity and Integration*, *supra* n 149; House of Commons Home Affairs Committee, 'Radicalisation: The Counter-narrative and Identifying the Tipping Point', *supra* n 127 at 11 and 55 (Conclusions and Recommendations). For an analysis of the impact of US PVE and CVE programmes, see ACLU and Brennan Center for Justice, 'Human Rights Concerns with Programs to Prevent and Counter Violent Extremism', April 2016.

162 Access Now, 'Access Now Position Paper: A Digital Rights Approach to Proposals for Preventing or Countering Violent Extremism Online', November 2016, at 6–7.

163 See HM Government, *Prevent Strategy*, *supra* n 127 at paras 8.34, 8.47–8.50, 8.56, 8.61 and 10.92.

and build resilience against violent extremism.¹⁶⁴ The Secretary-General has recommended that states promote media and digital literacy, while the Human Rights Council has highlighted ‘the potential contribution of the media and new communication technology, including the Internet, to . . . strengthening the rejection of violent extremism’.¹⁶⁵ According to the Joint Declaration of the international mandate-holders on freedom of expression, states should also ensure: transparency of PVE and CVE programmes and private enterprise initiatives that support them; the acceptance of reporting on acts of terrorism unless it incites violence; the protection of the confidentiality of sources; an absence of pressure on intermediaries to remove content; the encouragement of ‘open debate and access to information about all topics’; proper oversight of states’ surveillance which should be targeted to individuals rather than groups; and no blanket prohibitions on anonymity and encryption or the weakening of digital security tools.¹⁶⁶ The NGO Access Now goes further by arguing for ‘independent reporting and open, free discussion online’, the facilitation of ‘open dialogue through technical means such as enabling replies in online forums’ and transparency of PVE and CVE programmes, including ‘those to remove content, deactivate accounts, or promote counter-narratives’.¹⁶⁷

5. CONCLUSION

This exploration of three narratives in the wake of the *Charlie Hebdo* attacks has exposed major features of the contemporary rhetorical, political and legal landscape of freedom of expression: the deep global divisions and ongoing hypocrisies that it gives rise to; the swathe of relevant international law, especially in the area of protection of journalists, and also with regard to artistic expression, ‘hate speech’ and blasphemy (although in relation to the latter two areas, European human rights law falls short of global standards); and the extensive scope of states’ PVE and CVE policies, which cast doubt on the authenticity and depth of their commitments to freedom of expression, as well as the UN human rights system’s responses towards violent extremism, which have so far lacked a sense of coherence. The three accounts also highlight a multitude of state and non-state actors whose investment and influence critically shape global discussions on freedom of expression: from the leaders and people of Europe to those of OIC states; from the ECtHR, to the UN Secretary-General to the Human Rights Council and its Special Procedures; from media organisations to Internet companies; from civil society organisations and NGOs, to public intellectuals. In today’s digital age, however, global debates concerning ‘religious censorship’, ‘hate

164 Human Rights Council Resolution 30/15 2 October 2015, A/HRC/RES/30/15, recognises that: ‘tolerance and dialogue among civilizations and the enhancement of interfaith and intercultural understanding and respect among peoples . . . are among the most important elements in promoting cooperation, combating terrorism and countering violent extremism’ (para 8) and ‘encourages states to . . . counter narratives that incite acts of violent extremism and terrorism and address conditions conducive to the spread of violent extremism, including by empowering women, religious, cultural, education and local leaders, engaging members of all concerned groups in civil society and the private sector’ (para 5). According to the Special Rapporteur, ‘governments should counter ideas they disagree with, but should not seek to prevent non-violent ideas and opinions from being discussed’: see Report of Special Rapporteur on counter-terrorism and human rights, *supra* n 139 at 38. See also SC Res 2178, *supra* n 135 at paras 16, 19; Secretary-General’s report, *supra* n 135 at paras 49(e) and 55(a).

165 Secretary-General’s report, *supra* n 135 at paras 55(b) and 58(h).

166 Joint Declaration, *supra* n 140 at paras 2(a)–(j).

167 Access Now, *supra* n 162 at 6–7.

speech' and violent extremism appear destined to increasingly focus around questions surrounding the scope of the responsibilities of Internet intermediaries, especially social media companies.¹⁶⁸ In capturing the ambivalence and resistance of societies, states and intergovernmental organisations towards freedom of expression today, the three narratives presented in this article ultimately serve to put all of us on notice that the understanding and defence of the right against formidable emerging challenges will be a profoundly tougher, but ever more necessary, enterprise.

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168 On 1 March 2018, the European Commission adopted a Recommendation on measures to effectively tackle illegal content online, which proposes that platforms should detect, remove and prevent the re-appearance of illegal content online, including 'terrorist content' and 'hate speech'. Under the Recommendation, 'terrorist content' should be taken down within only one hour: see European Commission, Recommendation on measures to effectively tackle illegal content online, 1 March 2018, C(2018) 1177 final.